

CONSTITUTIONAL EVENTS IN PAKISTAN

FROM 1947-2025



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PREFACE

The Quest for a Social Contract: A Constitutional Analysis

The constitutional history of Pakistan is far more than a mere chronology of dates and articles; it is a profound narrative of a nation's struggle to define its identity and govern its diverse populace under a unified legal framework. This book, *Constitutional Events in the History of Pakistan from 1947–2025*, has been meticulously compiled to serve the specific needs of aspirants preparing for the Central Superior Services (CSS), Provincial Management Services (PMS), and Judicial examinations. It aims to bridge the gap between historical storytelling and legal analysis, providing the rigorous academic depth required to excel in competitive evaluations.

For a student of history or law, understanding Pakistan's constitutional evolution requires grappling with complex dichotomies: the friction between the Centre and the Provinces, the oscillation between parliamentary democracy and presidential autocracy, and the persistent tension between the *de jure* constitutional command and the *de facto* political realities. From the embryonic struggles of the Constituent Assembly in 1947 to the contemporary legal interpretations of 2025, this book dissects the pivotal moments that have shaped the Pakistani state. It does not merely recount events but analyzes the *causes* and *consequences* of constitutional abrogations, amendments, and restorations.

Special attention has been given to the landmark judgments of the Superior Courts, as no study of our constitution is complete without comprehending the role of the Judiciary. The inclusion of critical analyses regarding the "Doctrine of Necessity," the theory of revolutionary legality, and the recent shift towards judicial activism ensures that the reader is equipped with the arguments necessary for high-scoring essays and interview answers.

This work is intended to be a comprehensive companion. It seeks to empower the reader with the clarity of thought and the precision of knowledge needed to navigate the intricacies of Constitutional Law and Pakistan Affairs. It is my earnest hope that this book not only aids in your examination success but also fosters a deeper respect for the sanctity of the Constitution as the supreme law of the land.

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CONSTITUTIONAL EVENTS IN PAKISTAN (1947–2025)

1947 – Independence and Initial Legal Framework

1. Creation of Pakistan as a Dominion (14 August 1947)

- **Legal Basis:** Created under the **Indian Independence Act 1947**, passed by the British Parliament.
- Pakistan became a **British Dominion** (like Canada, Australia), **not a republic** yet.
- The British Monarch remained the **legal head of state**, represented by the **Governor-General** in Pakistan.
- The Act divided British India into **two dominions**: India and Pakistan, with legal parity.

2. Status

- **Constitutional Status:**
 - Pakistan was **not fully sovereign**; retained ties to British Crown for ceremonial and legal purposes.
 - **Governor-General** had extensive powers could dissolve legislatures, dismiss governments.
- The **Monarch (King George VI)** remained Pakistan's **symbolic sovereign** until 1956.
- No separate constitution interim system based on British legacy laws.

3. Government of India Act 1935 as Interim Constitution

- **Adopted via Pakistan (Provisional Constitution) Order 1947** by Governor-General.
- Heavily modified to suit the new dominion:
 - References to "India" replaced with "Pakistan".
 - Powers of the British Crown transferred to **Governor-General of Pakistan**.
- Functioned as the de facto constitution from 14 August 1947 to 23 March 1956.
- Provided framework for:
 - **Executive, Legislature, Judiciary.**
 - Federal structure (though largely **centralized in practice**).
 - Emergency powers and discretionary powers for Governor-General.

4. The Constituent Assembly of Pakistan (1947)

- Formed from **Muslim members** of the Indian Constituent Assembly.
- Inaugurated on **10 August 1947**, chaired by **Quaid-e-Azam Muhammad Ali Jinnah**.
- Dual function:
 - **Legislate as Parliament.**
 - **Draft and adopt a new Constitution.**
- Initially weak and dependent on executive powers of Governor-General.

5. Initial Legal & Administrative Challenges

- **Absence of a Constitutional Infrastructure:**

- No finalized constitution.
- No established judiciary of Pakistan yet.
- Legal continuity relied on colonial-era laws.
- **Division of Assets:**
 - Pakistan started with only 17% of British India's resources.
 - Reserve Bank of India initially served as Pakistan's central bank for one year.
- **Lack of Civil Services Infrastructure:**
 - British Indian Civil Service (ICS) not yet localized; Pakistan formed **CSP (Civil Services of Pakistan)**.

6. Early Laws & Orders Passed (1947–48)

- **Pakistan (Provisional Constitution) Order, 1947** – officially replaced Crown's authority.
- **Indian Independence (Rights, Property and Liabilities) Order, 1947** – defined division of legal obligations.
- **Federal Legislature passed adaptation laws** for:
 - Currency control.
 - Defense and police.
 - Public service commission.

7. Death of Quaid-e-Azam & Its Impact (1948)

- **Jinnah passed away on 11 September 1948**, leaving Pakistan without its main constitutional visionary.
- His death created a **power vacuum**, allowing **bureaucracy and military** to slowly increase influence over constitutional affairs.
- His speeches (especially 11 August 1947) were debated as to whether they indicated **secular or Islamic orientation** of the state.

8. Failure to Establish a Constitution Quickly

- Despite legal framework, **no progress** on constitution-making by 1949.
- Main reasons:
 - **Power struggles** between East and West Pakistan.
 - Lack of consensus on **Islam vs secularism, language, and federalism**.
- Delays allowed the **Governor-General** to assert more power over elected bodies.

9. Judiciary and Rule of Law (Foundations)

- Pakistan **inherited British common law system**.
- No separate Supreme Court yet; **Federal Court of Pakistan** was created later.
- Subordinate courts continued using **British Indian legal precedents**.
- First steps toward a **distinct judicial identity** began post-1948.

10. Role of Religion in the Early Framework (Pre-Objectives Resolution)

- Constitutionally, Pakistan was not yet an Islamic republic.
- However, **religious rhetoric** dominated political discourse.
- No explicit declaration of Islam as state religion yet religious leaders pressured the Assembly toward Islamic principles.
- Foundation laid for **Objectives Resolution (1949)** and eventual Islamization of constitutional framework.

1949 – Objectives Resolution

I. Background: Need for Constitutional Direction

- **Context (1947–1949):** After independence, Pakistan had no written constitution only the Government of India Act 1935 functioning as a temporary framework.
- Rising **debates in the Constituent Assembly** about the ideological basis of the new state:
 - Should Pakistan follow **Western-style secular democracy**?
 - Or should it become an **Islamic ideological state**?
- Pressure from **Islamic scholars (ulama)**, Islamic political parties (e.g. Jamaat-e-Islami), and religious groups for formal Islamic foundation.
- East Pakistan members demanded **secular democratic structure** with protection for minorities and recognition of Bengali culture.

II. Passage of the Objectives Resolution (7 March 1949)

- **Proposed by Liaquat Ali Khan**, Pakistan's first Prime Minister.
- **Adopted by the Constituent Assembly** on **12 March 1949**, despite opposition from East Pakistani representatives.
- Described by Liaquat as the “**cornerstone of Pakistan's constitutional framework.**”

III. 1. Sovereignty Belongs to Allah

- **Core Declaration:** “Sovereignty over the entire universe belongs to Almighty Allah alone.”
- **Denial of Absolute Human Authority:** Neither Parliament, judiciary, nor executive has **absolute, independent authority**.
- **Constitutional Implication:**
 - Introduced the principle of **limited legislation**: all laws must be **in accordance with divine will**.
 - Shifted legal supremacy from secular-humanist philosophy to **divine sovereignty**.
- **Impact on Legislative Framework:**
 - Future legal bodies were constitutionally bound to act as **trustees**, not **sovereigns**.
 - Created a foundational distinction between **Western democracy** and **Islamic constitutionalism** in Pakistan.

2. Authority to Govern via People's Trust

- **Dual Sovereignty Model:**
 - Allah is the **ultimate sovereign**.
 - People are the **medium** through which governance is executed.
- **Sacred Trust Principle:**
 - The elected government exercises power as a **trust**, not a **right**.
 - Reinforces **accountability to both the people and divine law**.
- **Democratic Linkage:**
 - People's will is recognized but **subordinate to divine guidance**.
- **Islamic Ethical Governance:**
 - Emphasizes **moral responsibility** and **ethical leadership**.

3. Islamic Principles of Governance

- **Law-Making Bound by Shariah:**
 - Future legislation must not contradict **Quran and Sunnah**.
 - In practice, this became the foundation for the **Islamization of laws** (e.g., Hudood Ordinances).
- **Moral and Social Reform Mandate:**
 - The state is duty-bound to promote Islamic values in **public life, economy, and justice system**.
- **Religious Obligations Supported:**
 - State may facilitate **prayers, zakat, and religious education**.
- **Islamic Education:**
 - Emphasis on **curriculum aligned with Islamic teachings**.
- **Institutional Result:**
 - Led to creation of bodies like:
 - **Council of Islamic Ideology (CII)** in 1962.
 - **Federal Shariat Court** in 1980.

4. Protection of Minorities

- **Religious Freedom Guaranteed:**
 - Non-Muslims allowed to “freely profess, practice and propagate” their religion.
- **Equal Citizenship Status:**
 - No discrimination based on religion in **legal, political, and civic domains**.
- **Cultural Rights Protected:**
 - Minorities have the right to preserve **language, customs, and institutions**.
- **Political Participation:**
 - Minorities have **representation in legislatures**.
- **Moral Framework:**
 - Derived from **Islamic injunctions about protecting non-Muslims (dhimmis)** under an Islamic state.

5. Fundamental Rights and Equality

- **Legal Equality:**
 - All citizens equal before the law, regardless of religion, caste, creed, or class.
- **Justice System Basis:**
 - Inspired by **Islamic notions of ‘adl (justice) and ihsan (benevolence)**.
- **Human Dignity:**
 - Protection of **life, honor, property, and freedom of thought**.
- **Economic Rights Implied:**
 - Emphasis on elimination of **exploitation, riba (usury), and unjust accumulation**.
- **Gender Equality Mentioned (Implied):**
 - Equal rights for **men and women** in accordance with **Quranic principles**.
- **Legacy:**
 - Formed the basis for **Articles 8–28** of the 1973 Constitution (Fundamental Rights Chapter).

6. Federation with Provincial Autonomy

- **Federal Structure Recognized:**
 - Pakistan was to be a **federal republic**, not a unitary state.

- **Provincial Autonomy Ensured:**
 - Each unit (province) shall have **maximum autonomy** in administrative and legislative matters.
- **Balance of Power:**
 - Federation to handle **defense, foreign affairs, currency**, while provinces control **education, health, etc.**
- **Preventing Centralization:**
 - Aimed to ease tensions between **East and West Pakistan** over power distribution.
- **Later Relevance:**
 - Inspired the **18th Amendment (2010)**, which devolved more power to provinces.

7. Role of the Judiciary (Implied Provision)

- **Guardian of Islamic and Constitutional Principles:**
 - Judiciary must **interpret laws** in accordance with Objectives Resolution.
- **Judicial Review Empowered:**
 - Acts of legislature or executive violating Quran and Sunnah can be declared invalid.
- **Long-Term Influence:**
 - Cited in important verdicts (e.g., **Zia's Supreme Court verdicts, Shariat Appellate Bench rulings**).

8. Ethical and Moral Governance (Implied Theme)

- **Emphasis on Islamic Morality:**
 - Corruption, dishonesty, and injustice discouraged.
 - Encouragement of **sacrifice, modesty, and service to humanity**.
- **Public Officials as Ameen (Trustees):**
 - Duty-bound to serve people with **integrity and fear of God**.

9. National Unity and Brotherhood

- **Unity of Ummah:**
 - Encouraged bonds of **brotherhood among all Muslims**.
- **Internal Harmony:**
 - Called for inter-provincial and inter-ethnic cooperation.
- **Discouragement of Sectarianism:**
 - Urged avoidance of religious divisions within Islam.

10. Basis for Future Constitutions

- **1956, 1962, and 1973 Constitutions:**
 - All adopted the Objectives Resolution as a **preamble**.
- **1985 Revival:**
 - Under Zia-ul-Haq, it was inserted into the Constitution as a **substantive part (Article 2A)**.
- **Used as Judicial Standard:**
 - Referred to in Supreme Court rulings as a **guiding principle for constitutional interpretation**.

11. International Relations Vision (Implied)

- **Global Muslim Solidarity:**

- Encouraged Pakistan to foster relationships with **other Muslim states**.
- **Peaceful Coexistence:**
 - While grounded in Islam, also aligned with **universal human rights** and **international law**.

IV. Immediate Reaction & Opposition

- **Strong opposition from East Pakistan:**
 - Hindu members like **Sris Chandra Chattopadhyay** and others objected to religious overtones.
 - Feared **marginalization of non-Muslims** in governance and citizenship.
- **Secular critics** viewed it as a **departure from Jinnah's pluralistic vision** (esp. his 11 August 1947 speech).
- Religious parties like **Jamaat-e-Islami** supported it but wanted even **stronger Islamic clauses**.
- Ultimately passed with majority votes, despite some walkouts and recorded dissent.

V. Constitutional Implications and Legal Effects

- Though not yet a constitution, it became a **foundational document**:
 - Set the **ideological direction** for all future constitutional drafting.
 - Became **Preamble** to all three Constitutions: **1956, 1962, and 1973**.
- It **cemented Islam as the core identity** of the state, overriding secular alternatives.
- First official recognition that **Pakistan was not a secular democracy**, but a state with **Islamic constitutional identity**.

VI. Judicial Recognition and Legal Status

- Initially treated as a **symbolic resolution**, not enforceable law.
- Later, in **1985**, via the **Revival of Constitution Order**, General Zia-ul-Haq **inserted the Objectives Resolution as a substantive part of the Constitution (Article 2A)**.
- Result: Courts began using it as **interpretive aid** in constitutional matters.
- **Supreme Court & Federal Shariat Court** frequently invoked Article 2A to:
 - Strike down un-Islamic laws.
 - Define "Islamic" injunctions in public policy.
- Examples:
 - **Zaheeruddin v. State (1993)** – declared Ahmadi activities illegal based on Islamic constitutional framework.
 - **Hakim Khan v. Govt of Pakistan (1992)** – confirmed Objectives Resolution as a valid constitutional reference point.

VII. Long-Term Political and Ideological Consequences

1. **Ideological Foundation of Islamic Republic:**
 - a. Cemented the concept that **Pakistan exists to implement Islamic values**, not just protect Muslim culture.
 - b. Laid foundation for future **Islamization drives** (Zia era especially).
2. **Minority Rights vs Islamic Identity:**
 - a. Persistent constitutional tension between **Islamic law requirements** and **guarantees of equal rights for non-Muslims**.
 - b. Recurrent legal controversies (e.g., blasphemy laws, Ahmadi status, religious freedom).
3. **Islamic Clauses in Later Constitutions:**

- a. 1956 Constitution declared **Islam as state religion**.
 - b. 1973 Constitution added Article 227: "All laws shall be brought into conformity with Quran and Sunnah."
 - c. Creation of **Federal Shariat Court (1980)** based directly on ideology of Objectives Resolution.
4. **Military Regimes' Use of Islamic Legitimacy:**
- a. Zia-ul-Haq invoked the Resolution to justify **martial law under Islamic duty**.
 - b. Islam became a **tool of constitutional legitimacy**, not just moral guidance.

VIII. Constitutional Scholar Perspectives

- **Dr. Safdar Mehmood:** Called it "the spiritual-moral constitution of Pakistan."
- **Hamid Khan (Constitutional expert):** Described it as "a double-edged sword" while ensuring Islamic identity, it also created long-term conflict between **modern constitutionalism and religious orthodoxy**.
- **Andrew Wilder:** Argued that it institutionalized **ideological ambiguity** in Pakistan's constitutional culture.

IX. Comparison with Other Countries

- **Unlike Turkey (secular Muslim republic) or India (secular democratic state),** Pakistan made **ideology constitutionally binding** through this resolution.
- Closer to **Iran (post-1979)** in fusing divine sovereignty with democratic mechanisms.
- Created a **hybrid model** that has caused decades of constitutional tension and legal interpretation debates.

1950 – First Constituent Assembly reforms

1. Creation of the Basic Principles Committee (BPC)

- **Formed on 12 March 1949**, shortly after the **Objectives Resolution** was passed.
- Objective: To recommend **principles** for drafting Pakistan's first full constitution.
- Created by the **Constituent Assembly**, which was still functioning under the **1935 Act (adapted)**.
- Headed by **Liaquat Ali Khan**, with **Maulvi Tamizuddin Khan** as the working chairman.
- Committee consisted of **24 members**, representing both wings of Pakistan.

2. First Report of the BPC (28 September 1950)

Main Proposals in the First Report:

- **Islamic Republic:**
 - Declared Pakistan shall be an **Islamic Republic**.
 - Sovereignty belongs to **Allah**, in line with Objectives Resolution.
- **Head of State:**
 - President must be a **Muslim**.
 - Would act on advice of Prime Minister but retain key powers.
- **Legislature:**
 - **Bicameral parliament** proposed:
 - **Upper House** (equal representation for provinces).
 - **Lower House** (based on population).
- **Federal System:**
 - Pakistan to be a **federation** with autonomous provinces.
 - Power-sharing structure left vague led to East Pakistan concerns.
- **Judiciary:**
 - Independent judiciary with power of **judicial review**.
 - No final clarity on role of **Shariah** courts.
- **Islamic Advisory Board:**
 - Proposed creation of a **board of Islamic scholars** to ensure laws were Shariah-compliant.
 - No legislative power only advisory.
- **Fundamental Rights:**
 - Promise to include a list of **basic civil rights**.
 - Religious freedom for minorities to be safeguarded.

3. Criticism and Controversy

East Pakistan's Reaction:

- Strong opposition from East Pakistani members:
 - They held **more than 50% of the population** but were not given proportional legislative strength.
 - Feared **West Pakistan dominance** via equal provincial representation in the Upper House.
- Bengali leaders demanded:
 - Parliamentary supremacy.
 - Recognition of **Bangla** as a state language.
 - More clarity on provincial autonomy.

Secular vs Islamic Identity Conflict:

- Secular intellectuals: warned of **religious majoritarianism** and erosion of pluralism.
- Religious parties: criticized BPC for being **not Islamic enough** — wanted Shariah law as supreme.

4. Impact of the First BPC Report

- Failed to produce consensus.
- Escalated **regional tension** and **ideological polarization**.
- Led to **delays in constitution-making**.
- Exposed **East-West divide** over identity, representation, and language.
- The report was **referred back for revision**, and a second version was presented in **1952**.

1954 – Dismissal of First Constituent Assembly

A turning point in Pakistan's constitutional history established **executive supremacy** and undermined the democratic process.

1. Political Context

- By 1954, the Constituent Assembly had not passed a constitution, despite working for **7+ years**.
- **Governor-General Ghulam Muhammad**, a former bureaucrat, became increasingly authoritarian.
- Friction emerged between:
 - The **Assembly**, asserting its right to limit the Governor-General's powers.
 - The **Executive**, wanting to maintain control over state direction.

2. Assembly Moves to Curtail Governor-General's Power

- The Constituent Assembly passed bills aiming to:
 - **Curb Governor-General's discretionary powers.**
 - **Amend the 1935 Act** to make him accountable to the Assembly.
- Governor-General saw this as a **direct threat** to executive authority.

3. 24 October 1954 – Dissolution of the Constituent Assembly

- **Governor-General Ghulam Muhammad unilaterally dissolved** the First Constituent Assembly.
- No election held. No public referendum.
- Justification: The Assembly **"no longer represented the will of the people."**
- This action had **no precedent in the Indian Independence Act or 1935 Act.**

4. Legal Challenge: Maulvi Tamizuddin Case (1955)

Background:

- **Maulvi Tamizuddin Khan**, President of the dissolved Assembly, challenged the Governor-General's action in **Federal Court**.

Sindh Chief Court (High Court):

- Ruled in **favor of Tamizuddin**.
- Held that the dissolution was **illegal and unconstitutional**.

Federal Court Judgment:

- Headed by **Chief Justice Muhammad Munir**.
- **Overtaken the High Court ruling in Federation of Pakistan v. Maulvi Tamizuddin Khan.**
- Justified dissolution by invoking:
 - **Doctrine of Necessity** (first use in South Asia).
 - **Lack of royal assent** on key bills passed by the Assembly.

Consequences:

- Set legal precedent: **executive power overrides legislature** in “extraordinary” circumstances.
- Severely damaged Pakistan’s **constitutionalism and rule of law**.
- Replaced democratic legitimacy with **bureaucratic-military dominance**.

5. Creation of Second Constituent Assembly (May 1955)

- Formed by **executive order**, not elected by the people.
- Legitimacy questioned by many legal scholars and politicians.
- Tasked with finalizing a constitution — led to **1956 Constitution**.

6. Long-Term Impact

Area	Consequence
Judiciary	Legitimized executive interference; undermined separation of powers
Democracy	Replaced elected representation with executive rule
Legal Doctrine	Birth of Doctrine of Necessity in Pakistan
Constitutional Delay	Added further years to constitution-making process
Civil-Military-Bureaucratic Complex	Strengthened at the expense of elected institutions

1956 – First Constitution of Pakistan and Its Breakdown (1956–1958)

The first full constitution of Pakistan, its structure, ideological underpinnings, implementation challenges, and eventual collapse under military rule.

1. Historical Background: Why the 1956 Constitution Was Needed

- Pakistan functioned under the **Government of India Act 1935 (adapted)** from 1947–1956.
- Political instability, ideological disagreements, and repeated drafts delayed constitution-making.
- **East-West divide**, provincial tensions, language disputes, and the place of Islam in the state all made consensus difficult.
- After the **Maulvi Tamizuddin case (1955)** and **creation of the Second Constituent Assembly**, pressure mounted to finally deliver a constitution.

2. Adoption of the Constitution

- **Date Passed:** 29 February 1956
- **Came into Force:** 23 March 1956
- **Drafted and approved** by the **Second Constituent Assembly**.

A. Islamic Republic

- **First in the World:**
 - Pakistan became the **first officially declared "Islamic Republic"** in history.
 - Termed "*Islamic Republic of Pakistan*" in the constitutional text.
- **Reference to Objectives Resolution:**
 - The **Objectives Resolution (1949)** was adopted as the **preamble** of the Constitution.
 - It served as a **guiding philosophy** without being a substantive article.
- **Religious Identity without Theocracy:**
 - While Islamic in spirit, the state did **not declare a theocratic rule** (i.e., no clerical supremacy).
 - Maintained a **constitutional framework rooted in Islamic values**, but structured through elected, parliamentary institutions.

B. Federal Parliamentary System

1. Structure of Government

- **Adopted Westminster-style Parliamentary System:**
 - Executive authority derived from the legislature.
- **President:**
 - *Elected by National Assembly.*
 - Ceremonial head of state.
 - Must be a Muslim (per Islamic provision).
- **Prime Minister:**
 - Head of government.
 - Real executive powers, including **appointment of ministers**, control over administration, and foreign policy.
 - Must command confidence of the **National Assembly**.

2. Legislature

- **Unicameral Parliament:**
 - National Assembly was the **sole legislative chamber**.
- **Equal Representation (Controversial):**
 - 150 seats each for **East and West Pakistan**, despite East having **more than 55% of total population**.
- **Problem Created:**
 - East Pakistanis resented this *artificial parity*.
 - Created structural imbalance and political dissatisfaction.

3. Parliamentary Accountability

- Cabinet collectively responsible to **National Assembly**.
- PM could be removed by **vote of no confidence**.
- Encouraged **multi-party democracy**.

C. Islamic Provisions

1. Islam as Guiding Framework

- Islam was recognized as the **state religion**.
- Laws must not contradict **Quran and Sunnah**.

2. Head of State Requirement

- President must be **Muslim**.
- First constitutional clause formally **linking eligibility for head of state to religion**.

3. Islamic Advisory Council (IAC)

- A non-binding body.
- Advised legislature on whether laws were Islamic or not.
- *Limitation:* Recommendations were **advisory**, not enforceable.
- Precursor to later **Council of Islamic Ideology (CII)**.

4. Protection of Religious Minorities

- Religious minorities granted **freedom of worship and practice**.
- Prohibition against any **discrimination on religious grounds**.

5. Secular Safeguards

- Despite Islamic tone, Pakistan did **not become a theocracy**.
- No institution of **clergy-run government**.
- Interpretation of Islamic law remained under **judicial and legislative** oversight, not ulema.

D. Fundamental Rights and Judiciary

1. Fundamental Rights Guaranteed

- Modeled after the **UN Declaration of Human Rights**.
- Included:

- Freedom of speech, press, and association
- Religious freedom and right to worship
- Right to property
- Equality before law
- Safeguards against arbitrary arrest and detention

2. Enforcement and Limitations

- Rights enforceable through **courts**.
- State could restrict rights in the **interest of security, morality, or public order**.

3. Judiciary Structure

- **Supreme Court of Pakistan:**
 - Apex court.
 - Final authority in constitutional interpretation.
- **High Courts:**
 - Established in provinces.
 - Enjoyed **independence** and **jurisdictional autonomy**.

4. Judicial Review

- Courts had power to:
 - Review **legislation for constitutional compliance**.
 - Strike down laws violating **fundamental rights**.
 - Protect against **executive overreach**.

E. Language Policy

1. Bilingual National Identity

- Declared **Urdu and Bengali** as **national languages**.
 - Recognition of **East Pakistan's linguistic identity** after the **Bengali Language Movement (1952)**.
- Aimed to **unify** the two wings without enforcing one language.

2. Transitional Use of English

- English allowed for **official and legal use** for up to **15 years**.
- Designed to provide **administrative continuity** and transition time.

F. Provincial Autonomy vs Centralization

1. Pakistan as a Federation

- Constitution declared Pakistan a **federation of provinces**.
- In theory: **autonomous units** with powers over education, health, and culture.

2. Reality: Strong Centralization

- Federal Government retained:
 - **Fiscal control** (taxation and resource allocation)
 - **Law and order**

- **Key economic decisions**
- **Centre held overriding power** over provincial matters.

3. One Unit Scheme (1955) [Continued from earlier reform]

- Merged all of **West Pakistan's provinces** (Punjab, Sindh, Balochistan, NWFP) into a **single unit**.
 - Purpose: **Parity** with East Pakistan in the National Assembly.
- **Criticism:**
 - Created resentment among **smaller ethnic groups** in West Pakistan.
 - Reduced **linguistic and cultural representation** (e.g., Sindhi, Baloch).
 - **East Pakistanis** also saw it as unfair, as they were being equated with **combined West**.

4. Legacy Issues

- Federal imbalance led to:
 - **Ethnic tensions**
 - **Demands for decentralization**
 - **Emerging regional nationalism** in both East and West Pakistan.

G. Presidency of Major General Iskander Mirza (1956–1958)

- Became the **first President of Pakistan** under the new Constitution.
- Former civil servant and military officer.
- Formed unstable coalition governments:
 - Frequent **Prime Minister changes** (four PMs in two years).
 - Political alliances were **fragile, opportunistic, and undemocratic**.
- Used **executive powers** to manipulate assemblies, dismiss cabinets.

H. Challenges and Weaknesses of the 1956 Constitution

A. Political Instability

- Constitution could not prevent **chronic government collapses**.
- Four Prime Ministers in two years:
 - **Chaudhry Muhammad Ali, Hussain Shaheed Suhrawardy, Ibrahim Ismail Chundrigar, Feroz Khan Noon.**

B. Executive Interference

- President **Iskander Mirza** frequently interfered in parliamentary processes.
- Constitution lacked clear safeguards against **authoritarianism**.

C. Lack of Provincial Confidence

- **East Pakistan** dissatisfied with:
 - **Equal seat distribution** despite majority population.
 - **Continued One Unit Scheme**, which marginalized them.
- **Smaller West Pakistani units** felt erased under One Unit (especially Baloch, Sindhi, Pashtun nationalists).

D. Weak Institutional Framework

- Constitution never **operationalized federalism** in practice.
- Local governments and institutions not empowered.
- Political parties lacked internal democracy.

I. Military Coup and Breakdown of the Constitution

7 October 1958: Martial Law Declared

- **President Iskander Mirza**, citing breakdown of parliamentary order:
 - **Abolished the Constitution.**
 - **Dissolved national and provincial assemblies.**
 - Imposed **martial law**, with **General Ayub Khan** (Commander-in-Chief) as **Chief Martial Law Administrator (CMLA).**

27 October 1958: Ayub Khan Takes Over

- **Ayub Khan deposed Iskander Mirza** and took full control.
- Became **President of Pakistan** and **absolute ruler.**
- The Constitution was **completely abrogated**, not suspended.

J. Legal Justification and Judiciary's Role

Dosso Case (1958)

- Supreme Court under **Chief Justice Muhammad Munir**:
 - Used **Hans Kelsen's theory of legal positivism.**
 - Held that a **revolution had taken place** and the new legal order was valid.
 - Validated Ayub's coup as a **"successful revolution".**
- [Inference] This set a dangerous precedent for **future military takeovers.**

K. Consequences of the Constitution's Collapse

Area	Consequence
Democracy	Parliamentary system collapsed permanently until 1973
Federalism	One Unit remained intact, deepening East-West alienation
Judiciary	Became tool to validate unconstitutional acts (Doctrine of Necessity)
Political Culture	Authoritarianism normalized; military-civil bureaucracy took over
Public Trust	Disillusionment with electoral politics and party system

L. Legacy of the 1956 Constitution

- **First attempt** to constitutionally reconcile:

- Islam and democracy
 - Unity and provincial autonomy
 - Islamic identity with modern governance
- Failed due to:
 - **Weak political culture**
 - **Authoritarian interference**
 - **Lack of institutional safeguards**
- Lessons from its failure were only partially addressed in the **1973 Constitution**.

1962 – Second Constitution of Pakistan

1. Historical Context and Background

- **Post-Abrogation Scenario (1958):**
 - General Ayub Khan abrogated the 1956 Constitution after imposing **Martial Law** in October 1958.
 - The **1956 Constitution** had introduced a **parliamentary democracy** which was dismantled.
 - Ayub assumed the office of **Chief Martial Law Administrator (CMLA)** and later became **President**.
- **Need for a New Constitution:**
 - Ayub sought to **legitimize** his rule through a legal framework.
 - Formed the **Constitution Commission** in 1960 headed by **Justice Shahabuddin**.
 - The Commission submitted its report in **1961** with proposals for a **presidential system**.
- **Promulgation:**
 - The **1962 Constitution** was promulgated on **1st March 1962** and came into effect on **8th June 1962**.
 - It **formally ended Martial Law**.
 - Was a **product of presidential initiative**, not parliamentary consensus.

2. Salient Features of the 1962 Constitution

- **Presidential Form of Government**
- **Unicameral Legislature**
- **Indirect Elections (Basic Democracies)**
- **Islam declared as State Religion**
- **Fundamental Rights provided (but with restrictions)**
- **Strong Centre, Weak Provinces**
- **Emergency Powers to the President**
- **Judiciary made subservient to Executive**

3. Form of Government

Presidential System

- **Shift from Parliamentary to Presidential model.**
- Inspired by the **U.S. system**, but **centralized** more power in the President.
- President was both **Head of State and Government**.

Powers of the President

- **Executive Powers:**
 - Appointed **ministers, governors, chief justices**, and **heads of departments**.
 - Could **dismiss** ministers and dissolve the **National Assembly**.
- **Legislative Powers:**
 - Could **veto laws**, **issue ordinances**, and **summon or prorogue the assembly**.
- **Emergency Powers:**
 - Could declare emergency in **any part or whole of the country**.
 - Could suspend **fundamental rights** during emergency.

4. The Legislature

Unicameral National Assembly

- Consisted of **156 members**:
 - **78 from East Pakistan**
 - **78 from West Pakistan**
- Members were elected by the **Basic Democrats** (an electoral college of 80,000).

Functions

- Lawmaking, but heavily **subordinate to the President**.
- Could be **dissolved** at the discretion of the President.

5. Judiciary

Structure

- Maintained **Supreme Court, High Courts, and Subordinate Courts**.

Judicial Independence

- Constitutionally ensured, but in practice, **curtailed**.
- **President appointed judges**.
- Judges could be **removed** by the President (undermined security of tenure).

Advisory Role

- Supreme Court could give **advisory opinions** to the President under Article 160.

6. Fundamental Rights and Islamic Provisions

Fundamental Rights

- Right to **life, liberty, property, religion, equality before law**, etc.
- Subject to **reasonable restrictions by law** (diluted protection).

Islamic Provisions

- Islam declared as **State Religion** (first time in Pakistan's constitutional history).
- President must be a **Muslim**.
- No law to be enacted **repugnant to Islam**.
- Advisory **Islamic Research Council** established.

7. Federalism

Strong Centre

- Pakistan remained a **federation**, but powers were **heavily concentrated in the Centre**.
- Provinces had limited autonomy.

Provincial Structure

- Provinces had **Governors**, appointed by the President.
- Provincial Assemblies existed but were largely **ceremonial**.

8. Electoral System

Basic Democracies System

- Introduced in 1959 under the Basic Democracies Order.
- A form of **controlled democracy**.
- Citizens elected **Basic Democrats**, who in turn:
 - Elected members of the National Assembly
 - Elected the President (through indirect election)

Referendum of 1960

- Ayub Khan used the Basic Democrats to get **referendum-based approval** for his presidency.

9. Emergency Provisions

- The President could declare:
 - **National Emergency** (in case of war or threat)
 - **Provincial Emergency** (if law and order situation deteriorated)
- Could **suspend fundamental rights** during emergency.
- Could issue **laws by decree** without the National Assembly.

10. Amendments and Reforms

First Amendment (1963):

- Strengthened emergency powers.
- Gave further discretionary powers to the President.

Other Amendments:

- Several minor **constitutional orders and amendments** to consolidate Ayub's powers.
- No **parliamentary process** for checks and balances.

11. Criticism and Weaknesses

- **Authoritarian Nature:**
 - Concentration of all powers in the President.
 - Lack of separation of powers.
- **Indirect Democracy:**
 - Basic Democracies system lacked **popular participation**.
 - No **direct universal suffrage**.
- **Weak Provincial Autonomy:**

- Provinces were under central control, especially through **One Unit scheme**.
- Islamic Provisions were symbolic:**
 - Did not lead to significant **Islamization of law** or policy.
- No Senate or Bicameralism:**
 - Smaller provinces lacked **equal representation**.
- Presidential Discretion over Judiciary:**
 - Undermined the **independence of judiciary**.

12. Abrogation and Aftermath

- Constitution failed to **withstand public dissatisfaction**.
- Massive protests erupted in **1968-69**, leading to Ayub Khan's resignation.
- Ayub handed power to **General Yahya Khan**, who **abrogated the Constitution** in **March 1969** and re-imposed **Martial Law**.
- The **1962 Constitution was suspended**, ending the second constitutional experiment.

13. Significance in Constitutional Development

- First formal introduction of a **presidential system** in Pakistan.
- Set a **precedent for authoritarianism** under the cover of constitutionalism.
- Showed the **fragility** of constitutional systems without **democratic legitimacy**.

14. Comparison with 1956 and 1973 Constitutions

Feature	1956 Constitution	1962 Constitution	1973 Constitution
System	Parliamentary	Presidential	Parliamentary
Legislature	Unicameral	Unicameral	Bicameral
Head of State	Governor-General (then President)	President	President (Ceremonial)
Head of Government	Prime Minister	President	Prime Minister
Islam as State Religion	No	Yes	Yes
Fundamental Rights	Strong	Restricted	Guaranteed
Judiciary	Independent	Controlled	Independent (in principle)
Military Role	Absent	Institutionalized	Subordinate (formally)

1969–1971: Yahya Khan's Martial Law and the Legal Framework Order (LFO)

Period Overview:

Following mass protests against Ayub Khan, General Agha Muhammad Yahya Khan imposed martial law and assumed power in March 1969. This era was marked by constitutional void, political fragmentation, efforts at federal restructuring, and ultimately, the secession of East Pakistan. The Legal Framework Order (1970) attempted to provide a constitutional transition, but its failure led to the disintegration of Pakistan.

1. Background: Collapse of Ayub Khan's System

a. Public Revolt Against the 1962 Constitution

- Countrywide protests erupted from 1968 onwards:
 - Led by students, workers, and political opposition.
 - Accused Ayub of rigging 1965 elections, authoritarianism, and crony capitalism.
- 1962 Constitution failed to accommodate dissent or correct federal imbalances.

b. Transfer of Power to Military

- On 25 March 1969, Ayub Khan handed over power to General Yahya Khan under pressure.
- Yahya:
 - **Abolished the 1962 Constitution.**
 - Imposed **Martial Law** across Pakistan.
 - Assumed the role of **President and Chief Martial Law Administrator (CMLA).**

2. Martial Law under Yahya Khan (1969–1971)

a. Consolidation of Military Rule

- Yahya suspended political institutions and civil liberties.
- Governance centralized under military administrators in all provinces.

b. Key Orders and Decrees

- Martial Law Orders (MLOs) used to arrest political activists and regulate media.
- State institutions purged of opposition sympathizers.

3. Administrative Measures and Federal Reforms

a. Abolition of One Unit (1969)

- Yahya reversed the One Unit Scheme through Martial Law Order No. 72:
 - West Pakistan broken into its original provinces: Punjab, Sindh, NWFP, and Balochistan.
 - This restored the federal structure in the West.
- East Pakistan retained its provincial status.

b. Provincial Realignment

- Introduced separate governors and administrations for each province.
- Restored ethnic and linguistic identities previously erased by One Unit.

4. Legal Framework Order (LFO) – 30 March 1970

1. Provide Legal Basis for First Direct Elections

- **Historical First:**
 - The LFO enabled **Pakistan's first-ever general elections based on adult franchise**.
 - Prior to this, no national legislature had been elected directly by the people.
- **Democratic Legitimacy:**
 - It aimed to bring **democratic continuity** after prolonged **military rule under Ayub Khan and Yahya Khan**.
- **One-Man, One-Vote Principle:**
 - Abolished previous **parity system** between East and West Pakistan.
 - Allowed for **representation based on population**, benefiting East Pakistan.

2. Reconstitute Pakistan as a Democratic State

- **Post-1958 Constitutional Vacuum:**
 - Pakistan had no operational constitution after **the 1956 Constitution was abrogated by Ayub Khan in 1958**.
 - LFO served as **interim legal order** until a new constitution could be framed.
- **Replace Martial Law with Civilian Rule:**
 - Intended to **transition Pakistan back to constitutional civilian governance**.
 - However, the **military would continue to exercise control** until the new constitution was passed.

3. Define Structure for Constitution-Making

- **Role of National Assembly:**
 - Elections were to be held to form a **unicameral National Assembly**.
 - This Assembly's task was to **frame a new constitution within 120 days** of its first sitting.
- **Two-Stage Transition Plan:**
 - **Election of representatives** via direct vote.
 - **Framing and promulgation of a new constitution** by the elected body.

4. Maintain Central Military Control During Transition

- **Preserve Role of the President:**
 - Until a new constitution was adopted, **President Yahya Khan would retain control**.
 - He would:
 - Continue as **chief executive**.
 - Have power to **veto any proposed constitution** if it violated LFO principles.
- **Military Oversight:**
 - Though elections were allowed, the **military retained veto authority** and final approval powers.

5. Prevent Secession or Provincial Dominance

- **Binding Constitutional Principles in LFO:**
 - Constitution must guarantee:
 - **Federalism** (not a unitary state).
 - **Islamic ideology.**
 - **Preservation of Pakistan's territorial integrity.**
 - Yahya Khan emphasized **no province should dominate others**, indirectly targeting East Pakistan's **expected majority**.
- **Limit Popular Will:**
 - Although the people would elect representatives, **their authority was constrained** by the **pre-defined LFO framework**.

6. Restore Confidence in State Legitimacy

- **Attempt to End Political Crisis:**
 - After **public unrest and failure of Basic Democracies under Ayub**, the LFO was seen as a way to **re-legitimize the state**.
- **Placate East Pakistan:**
 - Promised **equal political participation**, which had been denied previously.
 - Intended to **address demands for provincial autonomy** (but did not deliver substantive power devolution).

7. Legal Cover for Yahya's Regime

- **De Facto and De Jure Control:**
 - LFO legalized Yahya Khan's continued rule after Ayub's resignation.
 - Gave **constitutional cover to Martial Law (ML Order No. 3)** until elected government took over.
- **No Backdating:**
 - Unlike Ayub's 1962 Constitution, which was imposed retroactively, LFO functioned **prospectively** and **outlined the future path**.

b. Core Provisions of the LFO

Principle	Detail
Federalism	Affirmed Pakistan as a federal Islamic republic
Parliamentary System	Future Constitution to be framed by an elected National Assembly
Direct Elections	One-person, one-vote system for the first time in Pakistan's history
Assembly Powers	Constituent Assembly must prepare a Constitution within 120 days

Islamic Principles	Constitution must not violate the Quran and Sunnah
Presidential Veto	President retained authority to approve or reject Constitution
Territorial Integrity Clause	Constitution must maintain “integrity, sovereignty, and security” of Pakistan

5. General Elections of 1970

a. Conduct and Significance

- First **direct elections** in Pakistan’s history.
- 300 seats in National Assembly:
 - East Pakistan: 162
 - West Pakistan: 138
- Held in December 1970 under LFO rules.

b. Election Outcome

- **Awami League (Sheikh Mujibur Rahman):**
 - Swept East Pakistan with **160 out of 162 seats**.
 - Won **outright majority** in National Assembly.
- **Pakistan Peoples Party (Zulfikar Ali Bhutto):**
 - Dominated West Pakistan, especially Punjab and Sindh.
 - Secured **81 seats**, but none in East Pakistan.

c. Political Deadlock

- Awami League demanded:
 - Implementation of its **Six-Point Program** (autonomy for East Pakistan).
 - Power to form government based on majority.
- Bhutto and West Pakistani establishment:
 - Opposed full implementation of Six Points.
 - Feared breakup of federal structure and central authority.
- Yahya postponed the National Assembly session (1 March 1971), worsening the crisis.

6. Breakdown of the LFO and Failure of Constitutional Transition

a. Rejection of East Pakistani Mandate

- Despite winning majority, Awami League was **denied power**.
- Considered a violation of democratic principles and the LFO itself.
- Massive protests erupted in East Pakistan.

b. Launch of Operation Searchlight (25 March 1971)

- Yahya launched a **military crackdown** in East Pakistan.
- Thousands killed, universities raided, political leaders arrested.

- Mass migration to India (~10 million refugees).
- Escalated into civil war.

7. Disintegration of Pakistan: Fall of East Pakistan (December 1971)

a. India-Pakistan War and Creation of Bangladesh

- India militarily intervened in support of Mukti Bahini.
- War broke out in December 1971.
- Pakistan Army surrendered on 16 December 1971.
- East Pakistan became the independent state of **Bangladesh**.

b. End of Yahya Khan's Rule

- Yahya resigned under public pressure on 20 December 1971.
- Power transferred to **Zulfikar Ali Bhutto**.
 - Became **President and CMLA**.
 - Promised restoration of democracy and constitutional rule.

8. Constitutional Implications of the 1969–71 Period

Area	Effect
Federalism	One Unit abolished; provinces restored, but too late to prevent East Pakistani secession
Democracy	LFO offered promise of democratic transition, but denial of majority rule undermined it
Judiciary	Lacked independence; did not challenge executive decisions or martial law actions
Military Role	Became permanent political actor; military decisions shaped political outcomes
Civil Liberties	Severely restricted under martial law; political voices in East Pakistan silenced
Constitutional Continuity	Second abrogation of a constitution; LFO failed to evolve into a new basic law

9. Legacy of the Yahya Period

- **First direct elections in Pakistan**, but democratic failure followed.
- Exposed the weaknesses of a **centralized state** unable to accommodate diversity.
- Demonstrated that **constitutional documents (like the LFO)** were meaningless without:
 - Genuine federalism
 - Civilian supremacy
 - Respect for electoral mandates
- The events of this era directly shaped the **1973 Constitution**, especially:
 - Inclusion of stronger provincial autonomy provisions.
 - Emphasis on parliamentary democracy.
 - Rebuilding of national unity after secession.

1971 – Secession of East Pakistan

Overview:

The disintegration of Pakistan in December 1971 was a **watershed constitutional crisis**, marking the failure of state structure, constitutional design, and political accommodation. East Pakistan, despite being the majority province, seceded and formed **Bangladesh** after a brutal civil war. This event fundamentally reshaped Pakistan's legal, constitutional, and political trajectory.

1. Immediate Constitutional Significance

a. Disintegration of the First Federation of Pakistan

- East Pakistan comprised over **55% of Pakistan's total population**.
- Its secession marked the **collapse of the 1947 federal model**.
- **LFO (1970)**, which had authorized the National Assembly to draft a constitution, **lost legitimacy** when the largest provincial block broke away.

b. Loss of Constitution-Making Mandate

- The **National Assembly (elected in 1970)** no longer reflected Pakistan's complete population after 1971.
- It could not legally continue as the **constituent assembly**.
- This created a **constitutional vacuum** for the remaining western wing.

c. Collapse of Legal Continuity

- The **Legal Framework Order (LFO)** of 1970 assumed a united Pakistan.
- With East Pakistan's departure, its legal premises became invalid.
- A **new constitutional order** became necessary for the "new" Pakistan (West Pakistan minus East).

2. Causes of the Secession (Constitutional and Political)

a. Denial of Democratic Majority Rule

- **Awami League**, under Sheikh Mujibur Rahman, secured **160 out of 300 National Assembly seats** (majority).
- Constitutionally, this gave it the right to:
 - Form government
 - Draft the new constitution
- **Bhutto and the West Pakistani elite refused to accept this** majority outcome, demanding a power-sharing formula.
- The **postponement of the National Assembly session** (1 March 1971) was viewed in East Pakistan as:
 - **Unconstitutional**
 - A deliberate attempt to **deny provincial autonomy**

b. Failure to Accommodate Federalism

- Awami League's **Six Points** demanded:
 - Fiscal autonomy
 - Separate currencies or currency controls
 - Control over trade, taxation, and militia
- The West Pakistani establishment **refused**, viewing it as a path to **confederation or secession**.
- This exposed the **inflexibility of Pakistan's centralist constitutional mindset**.

c. Absence of Judicial or Constitutional Arbitration

- **No constitutional court** or neutral institution was available to resolve the crisis.
- The judiciary remained **silent** during political repression and military action.
- The constitutional system failed to prevent the outbreak of **civil war**.

3. The Military Crackdown and Breakdown of the Union

a. Operation Searchlight (March 1971)

- Military launched action against Awami League, students, and civil society in Dhaka.
- Widely reported massacres and human rights violations.
- Political process was **entirely replaced by military suppression**.
- Thousands fled to India; **10 million refugees** estimated.

b. Indian Intervention and the 1971 War

- India provided sanctuary to Mukti Bahini (Bengali resistance).
- War broke out on 3 December 1971.
- **Pakistan Army surrendered on 16 December 1971** in Dhaka.

c. Emergence of Bangladesh

- East Pakistan formally became **Bangladesh**, an independent state.
- Pakistan lost its **majority population** and strategic depth in the east.

4. Consequences for Pakistan's Constitutional Framework

a. Need for a New Constitution

- The **existing legislative setup became invalid**.
- The **LFO, 1962 Constitution, and past federal compromises had all failed**.
- Created a **national demand** for:
 - Democratic restoration
 - Parliamentary supremacy
 - Provincial autonomy
- This culminated in the **1973 Constitution**.

b. Reinforcement of Federalism as a Priority

- The collapse of the original federation showed that:
 - Centralization leads to alienation.
 - Uniformity cannot be imposed on multi-ethnic societies.
- The **1973 Constitution** explicitly gave:
 - **More provincial autonomy**
 - Clear **division of powers**
 - Recognition of regional identities

c. Legal Status of the Remaining State

- Pakistan continued under the name "Islamic Republic of Pakistan", but:
 - Had to redefine its **territorial scope**.
 - Needed to establish legal continuity through a new constitution.
 - International law recognized Pakistan as the **continuing state**, not a new one.

5. Political and Military Aftermath

a. Fall of Yahya Khan

- Public anger over military defeat and repression led to:
 - **Resignation of Yahya Khan** (20 December 1971).
 - **Zulfikar Ali Bhutto** assumed power as:
 - President
 - Chief Martial Law Administrator (CMLA)

b. Transition to Civilian Rule

- Bhutto promised:
 - **Democratic transition**
 - **Drafting of a new constitution**
- Initiated **interim constitutional measures** leading up to the **1973 Constitution**.

6. Lessons and Legacy

Theme	Lesson
Federalism	Constitutional unity cannot survive without true provincial autonomy
Majoritarian Rule	Denying an electoral mandate undermines constitutional legitimacy
Military Involvement	Military solutions to political problems destroy legal order
Constitutional Arbitration	Absence of independent constitutional institutions worsened the crisis
Civil-Military Imbalance	Armed forces overrode democratic and constitutional processes
Ethnic Inclusion	Pakistan failed to constitutionally integrate its largest ethnic bloc

7. How the 1971 Crisis Shaped the 1973 Constitution

- Parliamentary democracy was reaffirmed to replace presidential centralism.
- Provinces were given:
 - **Greater autonomy** through clearer lists (Federal, Concurrent, Residual).
 - **Cultural and linguistic rights** recognition.
- Islam retained its central role, but regional diversity was formally accommodated.
- An effort was made to constitutionally define and limit **military power** (though not fully successful).

Comparison: Pre-1971 vs. Post-1971 Constitutional Frameworks of Pakistan

Dimension	Pre-1971 (1947–1971)	Post-1971 (1971 Onwards)
Territorial Integrity	Included East & West Pakistan	Only West Pakistan remains (East Pakistan becomes Bangladesh)
Population Majority	East Pakistan had majority (55%)	Majority now in Punjab province
Federal Structure	Centralized, often unitary in practice (especially after One Unit 1955)	Re-established federalism with greater provincial autonomy (1973 Constitution)
Provincial Composition	One Unit policy erased provincial identities in West Pakistan	Provinces restored: Punjab, Sindh, NWFP, Balochistan (1969)
Constitutional Documents	- Objectives Resolution (1949) - 1956 Constitution - 1962 Constitution - Legal Framework Order (1970)	- Interim Constitution (1972) - 1973 Constitution (still in force)
Mode of Constitution-Making	Constituent assemblies appointed by executive; subject to military interruptions	National consensus through elected representatives under Bhutto
Electoral System	Indirect elections under Basic Democracies (1959) Direct elections introduced in 1970	Regular direct elections mandated by 1973 Constitution
Status of Islam in Constitution	Declared Islamic Republic in 1956 and 1962; Islamic provisions included	Islam retained central role; detailed Islamic clauses in 1973 Articles 2, 31, 227–231
Democracy vs Authoritarianism	Frequent military takeovers: 1958, 1969 Limited civil rule	Restoration of parliamentary democracy (1973) Later disrupted again in 1977, 1999
Military Role in Constitution	Military was extra-constitutional but dominant	Constitutionally subordinate, but retained de facto power

Role of Judiciary	Upheld martial laws using Doctrine of Necessity	Still used necessity doctrine but post-2009 judiciary more assertive
Language and Identity Politics	Ignored Bengali and regional identities; Urdu imposed	Acknowledged ethnic diversity post-1971 (e.g., Balochistan, Pashtun concerns addressed gradually)
Civil-Military Balance	Military dominated political decisions (especially in 1960s)	Bhutto's era marked civilian supremacy (temporarily); imbalance re-emerged in later decades
Constitutional Continuity	Disrupted repeatedly by abrogations: 1958 (1956 Constitution), 1969 (1962 Constitution)	1973 Constitution survived with amendments (despite martial law in 1977, 1999)
Legal Framework Order (LFO)	Used in 1970 to govern transition, failed due to civil war	Revived later (2002 LFO under Musharraf), but post-1971 LFOs had less legitimacy
Ethnic Representation	East Pakistan underrepresented in decision-making	Ethnic representation attempted through federal ministries, quotas, etc.
Provincial Autonomy	Weak; federal control over resources, administration, and legislation	Strengthened under 18th Amendment (2010) ; provinces given control over education, health, etc.

Summary Insights

Observation	Implication
Denial of East Pakistan's electoral mandate was the breaking point of the first constitutional order.	Post-1971 reforms prioritized representative democracy and provincial autonomy .
Federalism in theory existed before 1971, but was heavily centralized in practice .	After 1971, federalism was restructured to prevent further disintegration .
The judiciary and constitution proved unable to prevent disunity .	Post-1971 efforts aimed to strengthen constitutional supremacy, but challenges persist.
East Pakistan's loss forced a redefinition of Pakistan's national identity .	Led to re-assertion of Islamic identity, Punjabi dominance, and a renewed search for unity .

1972 – Interim Constitution of Pakistan

Contextual Overview:

After the secession of East Pakistan in December 1971, the **legal framework of the state collapsed**. There was **no functioning constitution** as the **1962 Constitution had already been abrogated**, and the **Legal Framework Order (1970)** lost its validity due to the disintegration of the country. To fill this vacuum, an **Interim Constitution was promulgated in April 1972** under Zulfikar Ali Bhutto's leadership to **govern the remaining state** until a permanent constitution could be framed.

1. Why Was the Interim Constitution Necessary?

a. Collapse of Legal Continuity

- The **Legal Framework Order (LFO)** was designed for a **united Pakistan** including East and West.
- After the creation of Bangladesh, the **1970-elected National Assembly lost its representative legitimacy**.
- The state had **no constitutionally defined structure**, no parliament, and was being governed under **martial law** since 1969.

b. Need for Civilian Transition

- **Zulfikar Ali Bhutto** took over as **President and Chief Martial Law Administrator** in December 1971.
- There was **immense internal and international pressure** to restore constitutional governance.
- A civilian-led legal order was essential for the process of **constitution-making**.

c. Confidence-Building for Provinces

- Provinces (especially Balochistan and NWFP) were **demanding autonomy** after the failure of the centralist model.
- An interim arrangement was needed to:
 - Give provinces a voice
 - Restore faith in the democratic process

2. Key Features of the 1972 Interim Constitution

Feature	Details
Type	Parliamentary system (temporarily)
Form of Government	President remained Head of State but with limited executive powers
Prime Minister Position Created	Bhutto became President , but also acted as PM (in practice)
Provincial Assemblies Restored	First time since One Unit dissolution (1970) that provinces resumed legislative powers

Islamic Provisions	Retained the Islamic Republic status ; continued use of Objectives Resolution as a guiding principle
Continuity Clauses	Ensured that existing laws, judiciary, and civil service continued functioning
Emergency Powers	Central government retained strong emergency powers , reflecting post-war insecurity
Language	English retained temporarily as the official language; issue of national languages deferred
Judiciary	Continued under pre-existing structure; no constitutional reforms in judiciary yet

3. Structure Under the Interim Constitution

a. Legislature

- National Assembly reconstituted from **West Pakistani members elected in 1970**.
- **Bicameral system not adopted** at this point.
- **Law-making authority** restored to the assembly.

b. Executive

- Zulfikar Ali Bhutto served as:
 - **President (Head of State)**
 - **De facto Prime Minister (Head of Government)** – through administrative control
- Federal ministers appointed from the assembly.

c. Provinces

- Provincial Assemblies were:
 - **Reinstated**
 - Empowered to pass laws in provincial domains
- Provincial governors were appointed, mostly from **PPP-aligned leadership**.

4. Constitution-Making Roadmap Introduced

- **Bhutto pledged to create a permanent constitution by August 1973**.
- **Constitutional Committee** formed, led by **Abdul Hafeez Pirzada**, included:
 - PPP
 - National Awami Party (NAP)
 - Jamiat Ulema-e-Islam (JUI)
 - Others from Balochistan, NWFP, Sindh, Punjab

5. Limitations and Criticism

a. Centralized Emergency Powers

- The interim constitution **continued the centralist trend** despite lessons from East Pakistan's secession.

b. Over-Concentration of Power

- Bhutto, as both **President and CMLA**, had **near-total control**.
- Interim framework did not effectively **separate powers**.

c. No Judicial Reforms

- The judiciary's past use of **Doctrine of Necessity** was **not challenged** or reformed.
- Courts remained passive in constitutional matters during the interim period.

d. Legitimacy Questions

- The Interim Constitution was **not passed by a fully elected and representative body**.
- Exclusion of East Pakistani MNAs (though understandable) raised concerns of **legal continuity**.

6. Achievements of the Interim Constitution

Achievement	Explanation
Restoration of Parliamentary Process	Marked the end of continuous martial law since 1969
Platform for Consensus	Enabled negotiation between parties and provinces for 1973 Constitution
Legitimized Bhutto's Rule	Provided a legal basis for civilian authority after Yahya Khan's fall
Stabilized the State	Allowed temporary governance and administration in a post-secession environment

7. Legacy and Link to 1973 Constitution

- The **1972 Interim Constitution laid the groundwork** for:
 - Parliamentary restoration
 - Provincial autonomy
 - Islamic identity integration
- It **reflected the urgent need for unity through compromise**.
- The experience helped refine the **1973 Constitution**, which:
 - Was passed with **national consensus**
 - Replaced the interim document on **14 August 1973**

The 1973 Constitution of Pakistan

I. Historical Context and Background

1. Political Breakdown (1969–1971)

- **Ayub Khan's regime** collapsed in 1969 due to public unrest.
- **General Yahya Khan** took over and abrogated the **1962 Constitution**, reimposing **Martial Law**.
- He conducted the **first general elections in 1970** on the basis of **universal adult franchise**.

2. 1970 Elections and Disintegration of Pakistan

- **Awami League (East Pakistan)** won majority with **160 out of 300 seats**, led by **Sheikh Mujibur Rahman**.
- **Pakistan Peoples Party (PPP)**, led by **Zulfikar Ali Bhutto**, refused to accept the Awami League's dominance.
- Failure to convene the National Assembly led to the **Bangladesh Liberation War (1971)** and **breakup of Pakistan**.
- **East Pakistan became Bangladesh** after Indian military intervention in December 1971.

3. Transition to Civilian Rule

- Yahya Khan resigned; **Zulfikar Ali Bhutto became President and CMLA**.
- Martial Law continued until the passage of the 1973 Constitution.

II. Formation of the 1973 Constitution

1. Interim Measures

- **Interim Constitution of 1972** introduced.
- Created a framework for civil government and promised a new constitution.

2. Constitution-Making Process

- A **25-member Constitutional Committee** was formed.
- Represented all major parties: PPP, NAP, JUI, PML factions, and independents.
- The **draft was finalized in April 1973**, passed on **10 April 1973**, and enforced on **14 August 1973**.

3. National Consensus

- Unlike earlier constitutions, the **1973 Constitution was passed unanimously**.
- Widely accepted as the **first democratic consensus-based document**.

III. Salient Features of the 1973 Constitution

- **Parliamentary form of government**
- **Bicameral legislature** (National Assembly and Senate)
- **Written and rigid Constitution**
- **Federal structure with provincial autonomy**
- **Islam as state religion**
- **Fundamental rights guaranteed**
- **Independent judiciary**

- **Clear separation of powers**
- **Strong democratic framework**

IV. Structure of the Constitution

1. Preamble

- Based on the **Objectives Resolution (1949)**, made a substantive part via Article 2A in 1985.

2. Total Articles and Schedules

- **280+ articles**, divided into **12 parts** and **7 schedules**.

V. Major Provisions by Domain

A. System of Government

1. Parliamentary Form

- Real executive power rests with **Prime Minister** and Cabinet.
- **President** is ceremonial, elected by Parliament for a 5-year term.
- President must act **on advice of the Prime Minister** (Article 48).

2. Prime Minister

- Leader of the majority in the **National Assembly**.
- Head of government with executive authority.

B. Legislature

1. Bicameral Parliament

- **National Assembly (Lower House):**
 - Directly elected, 5-year term.
 - Handles money bills, budget, legislation.
- **Senate (Upper House):**
 - Equal representation for provinces.
 - Indirectly elected by provincial assemblies.
 - Ensures **federal balance**.

2. Lawmaking Procedure

- All bills (except money bills) can originate in either House.
- **Money bills** must originate in the National Assembly.
- **Presidential assent** required.

C. Judiciary

1. Structure

- **Supreme Court, High Courts** in provinces, **Federal Shariat Court**, and **lower judiciary**.

2. Independence

- Guaranteed by constitutional provisions (Article 175).
- Judges appointed by **President on PM's advice**, but later strengthened via **Judicial Commission** (after 18th Amendment).

3. Powers

- **Judicial review, interpretation of Constitution, enforcement of fundamental rights.**

4. Federal Shariat Court (1979)

- Established later under Zia regime.
- Reviews laws for compliance with **Islamic injunctions**.

D. Fundamental Rights and Duties

1. Guaranteed Rights (Articles 8–28)

- Right to life, liberty, freedom of speech, religion, association, etc.
- Rights to equality before law and protection against discrimination.
- Right to education, property, and access to justice.

2. Limitations

- Subject to **reasonable restrictions in public interest**.
- Can be **suspended during emergency** (Articles 232–237).

E. Islamic Provisions

1. Islam as State Religion (Article 2)

- Pakistan declared an **Islamic Republic**.

2. Council of Islamic Ideology (Article 228)

- Advises Parliament on **Islamization of laws**.
- No law to be enacted **repugnant to Islam** (Article 227).

3. Religious Qualification for Leaders

- **President and PM must be Muslims**.
- Members of assemblies must have **good Islamic conduct** (Article 62, added under Zia).

F. Federal Structure

1. Division of Powers

- Three legislative lists initially:
 - **Federal List**
 - **Concurrent List** (abolished by 18th Amendment)
 - **Residual Powers** go to provinces.

2. Provincial Autonomy

- Each province has its **own legislature, chief minister, and governor**.
- **Council of Common Interests (CCI)** established for centre-province disputes (Article 153).

G. Election System

1. Direct Elections

- Members of the National Assembly elected through **adult franchise**.
- **Election Commission** created as an **independent body** (Article 218).

2. Reserved Seats

- For **women** and **non-Muslims**, to ensure representation.

H. Emergency Provisions (Articles 232–237)

- Federal Government may declare:
 - **National emergency** (war or threat)
 - **Provincial emergency** (failure of governance)
- During emergency:
 - **Fundamental rights may be suspended**
 - Centre may **legislate for provinces**

VI. Major Constitutional Amendments (Selected Overview)

Amendment	Year	Key Features
1st	1974	Recognized Ahmadis as non-Muslims
8th	1985	Legalized Zia's martial law , added Article 58(2)(b)
13th	1997	Removed 58(2)(b) (Presidential dissolution power)

17th	2003	Reinstated 58(2)(b) under Musharraf
18th	2010	Historic reform: abolished Concurrent List , restored parliamentary supremacy , enhanced provincial autonomy
21st	2015	Created military courts for terrorism cases

VII. Strengths of the 1973 Constitution

- **Democratic legitimacy** – passed with consensus.
- Ensures **federalism and provincial rights**.
- Comprehensive **Islamic framework** with flexibility.
- Provides **fundamental rights and judicial independence**.
- Allows for **constitutional evolution via amendments**.

VIII. Weaknesses and Criticism

- **Easily suspended by military** – abrogated or held in abeyance thrice (1977, 1999, 2007).
- Islamization provisions led to **sectarian divisions** and controversial laws.
- **Frequent amendments** by authoritarian rulers distorted its democratic essence.
- Still struggles with **enforcement of rights**, particularly women and minorities.
- Weak institutional **checks and balances** – especially on executive and military.

IX. Significance in Constitutional History

- Considered the **most enduring constitution** of Pakistan.
- A **living document**—amended but never fully abrogated since 1973.
- Basis of **democratic continuity** and **civilian governance** post-2008.
- **Framework for provincial harmony** after the 18th Amendment.

X. Comparison with Previous Constitutions

Feature	1956	1962	1973
Form	Parliamentary	Presidential	Parliamentary
Federalism	Weak	Very Weak	Strengthened
Religion	Islamic Republic	Islam as State Religion	Islam + Detailed Provisions

Legislature	Unicameral	Unicameral	Bicameral
Rights	Recognized	Limited	Guaranteed
Judiciary	Independent	Controlled	Independent
Electoral System	Indirect	Indirect	Direct
Civil-Military Balance	Civilian	Military Dominant	Civilian in structure

XI. Conclusion

- The **1973 Constitution** is the **cornerstone of Pakistan's democratic order**.
- Despite challenges, it continues to provide a **functional legal and political framework**.
- Its **survival through multiple regimes, coups, and crises** is a testament to its flexibility and foundational consensus.
- Future challenges lie in **effective implementation, judicial enforcement**, and protection of **civil liberties**.

1977 – Martial Law and Constitutional Suspension under Zia-ul-Haq

1. Context: Pre-Coup Political Breakdown

Background Factor	Details
1977 Elections	Held in March. Bhutto's PPP won majority, but opposition alleged massive rigging.
PNA Movement	Pakistan National Alliance launched mass protests demanding Bhutto's resignation and fresh elections.
Failed Negotiations	Dialogues between Bhutto and PNA broke down by July.
Military Intervention	On 5 July 1977 , General Zia-ul-Haq overthrew Bhutto's government , imposed Martial Law , and suspended the Constitution of 1973 .

2. Constitutional Impact of 1977 Martial Law

Aspect	Constitutional Consequences
Status of 1973 Constitution	Suspended but not abrogated outright.
Parliament & Assemblies	Dissolved ; legislative activity ceased.
Fundamental Rights	Suspended across Pakistan.
Judiciary	Judges made to take a fresh oath under PCO (Provisional Constitutional Order) 1981 .
Civil Liberties	Curtailed: media censorship, public gatherings banned, political parties restricted.
Emergency Rule	Martial Law Orders (MLOs) and Martial Law Regulations (MLRs) became supreme law.

3. Islamization of Laws (1979–1985)

Under Zia's vision of "Nizam-e-Mustafa" (Islamic system), several constitutional and legal amendments were introduced to **reshape Pakistan's legal identity**.

a. Hudood Ordinances (1979)

- Introduced harsh **Islamic punishments** for:
 - Zina (adultery/fornication)
 - Qazf (false accusation)
 - Theft (Hadd punishment: amputation)
 - Alcohol consumption
- Highly controversial; criticized for **gender bias** and misuse against women.

b. Nizam-e-Salat and Zakat (1980)

- **Zakat**: Mandatory deduction from bank accounts during Ramadan.
- **Salat**: Encouraged establishment of prayer timings in public institutions.

c. Federal Shariat Court (FSC) – 1979

- Empowered to:
 - **Review laws** for conformity with Quran and Sunnah.
 - Issue binding judgments to Islamize statutes.
- A parallel judicial forum with quasi-constitutional authority.

d. Qanun-e-Shahadat (Law of Evidence) 1984

- Replaced Evidence Act 1872.
- Included **discriminatory provisions**:
 - Woman's testimony considered **half of a man's** in financial matters.

e. Ordinances and Directives

- Civil and criminal laws amended via **Presidential Ordinances**.
- Bypassed parliament due to martial law conditions.

4. Judicial Endorsement – Doctrine of Necessity

Case	Relevance
Begum Nusrat Bhutto v. Chief of Army Staff (1977)	Supreme Court upheld Zia's martial law under " Doctrine of Necessity ", citing national interest.
Impact	Legitimized military takeover and undermined constitutional supremacy .

5. Provisional Constitutional Order (PCO) – 1981

- Issued in March 1981.

- Constitution **partially revived**, but all provisions were **subject to military override**.
- Judges required to take **new oaths under the PCO**:
 - **Several senior judges refused and were removed.**
- PCO **bypassed judicial review** of martial law orders and ensured **judicial loyalty**.

6. Suspension of Democratic Process

Aspect	Details
Political Parties	Activities banned ; opposition leaders jailed or exiled .
General Elections Promised	Initially set for 1977 → repeatedly postponed until 1985.
Bhutto's Execution (1979)	After a controversial trial, Bhutto was hanged , further entrenching military rule.

7. Constitutional Amendments under Zia (1977–1985)

Amendment	Impact
2nd Amendment (1974)	Not under Zia, but reinforced under his rule: Declared Ahmadis as non-Muslims.
8th Amendment (1985)	Legalized all actions taken by Zia under martial law. - Gave Article 58(2)(b) : Presidential power to dismiss elected governments.
Shariat Bill (non-amendment but crucial)	Gave Quran and Sunnah supreme legal status over other laws (passed later in 1990s but Zia laid foundation).

8. Legal Continuity and Transition

Event	Details
Martial Law Ended	December 1985: Zia lifted martial law after holding party-less elections .
Parliament Restored	National and provincial assemblies reactivated.

Zia Became President	Under 8th Amendment, he retained presidency and powers under military-backed civilian rule .
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Summary: Constitutional Consequences of 1977 Martial Law

Outcome	Explanation
Constitutional Supremacy Undermined	Constitution suspended; laws replaced by martial orders and PCO.
Islamization of Legal Framework	Laws were modified to reflect conservative Islamic principles.
Judiciary Compromised	PCO oath undermined judicial independence; courts validated military rule.
Militarization of Politics	Set precedent for military dominance even after civilian setup was restored.
Long-term Institutional Impact	Foundations laid for future authoritarian tools: Article 58(2)(b), FSC, etc.

Revival of the Constitution Order (RCO), 1985

1. What is RCO 1985?

RCO stands for the **Revival of the Constitution of 1973 Order**, issued by **General Muhammad Zia-ul-Haq** on **2 March 1985**.

Although it claimed to **restore the 1973 Constitution**, it made **major changes** to:

- Increase the **powers of the President**
- Protect **martial law actions**
- Insert **Islamic provisions**
- Prepare for **non-party elections**
- Reduce the powers of the **Prime Minister and Parliament**

2. Historical and Political Context Before RCO

a) 1977 Military Coup

- **General Zia-ul-Haq**, Chief of Army Staff, overthrew **Prime Minister Zulfikar Ali Bhutto** on **5 July 1977**.
- He imposed **martial law** and suspended the **1973 Constitution**.
- Claimed the action was to stop political unrest after controversial elections.

b) Martial Law Period (1977–1985)

- Zia ruled as **Chief Martial Law Administrator** and later as **President**.
- Parliament was **dissolved**, political activity **banned**, and courts had **limited power**.
- Zia promised elections within 90 days but delayed them for **8 years**.
- During this time, **Islamization** policies were introduced:
 - Hudood Ordinances
 - Zakat and Ushr systems
 - Shariah-based legal reforms

c) Pressure to Restore Democracy

- Domestic and international pressure forced Zia to hold elections and restore civilian government.
- But he wanted to **retain power**, so he revived the Constitution with changes that **favoured his control**.
- The **RCO** was issued before the **1985 elections**, so the new Parliament would follow Zia's version of the Constitution.

3. Nature of the RCO

- A **Presidential Order (No. 14 of 1985)**, issued by **Zia alone**, not passed by Parliament.
- **Revived the 1973 Constitution** but with **changes already inserted**.
- It acted like a **constitutional amendment** without following the proper **Article 239** process.
- It **bypassed democratic procedures** and gave permanent protection to all actions of the military regime.

4. Major Features of RCO 1985

a) Islamization

- The **Objective Resolution** was made part of the Constitution through **Article 2A**, making Islamic teachings a guiding principle for all laws.
- The **Federal Shariat Court** was strengthened with more powers to strike down laws that went against Islamic injunctions.
- **Islamic laws** like **Hudood Ordinances** and **Qisas & Diyat** were given legal protection, introducing punishments such as whipping, stoning, and blood money in line with Shariah.
- These steps increased the role of religion in law-making and gave religious scholars more authority in the legal system.
-

b) Article 58(2)(b) – Power to Dismiss Assembly

- President could **dissolve the National Assembly** if he believed the government was not working properly.
- Gave the President **absolute power** over the Prime Minister and Parliament.
- This article became the **most controversial legacy** of RCO.

c) Non-Party Elections 1985

- Banned political parties from contesting elections.
- All candidates had to run as **independent individuals**.
- Designed to **weaken political parties** and allow **military-friendly politicians** to enter Parliament.

d) Validation of Martial Law Actions

- All laws, orders, and decisions made during **5 July 1977 – 2 March 1985** were declared **legal**.
- Courts were **barred from challenging** any of these actions.

e) Presidential Supremacy

- The **President** was made more powerful than the **Prime Minister**.
- Could:
 - Appoint or remove the PM
 - Dissolve the Assembly
 - Control the Cabinet

f) Federal Cabinet Controlled by President

- The Cabinet had to **follow the President's instructions**.
- Ministers could not act independently.

5. What Happened After the RCO?

a) Elections of 1985

- Held in **February 1985** without political parties.
- Zia selected **Muhammad Khan Junejo** as Prime Minister.
- The new Parliament worked under the **RCO-modified Constitution**.

b) 8th Constitutional Amendment (1985)

- Passed by the new Assembly in **November 1985**.
- Made **all changes made by RCO a permanent part of the Constitution**.
- Gave legal cover to:

- Article 58(2)(b)
- All Islamic laws introduced by Zia
- Martial law decisions
- Courts were **blocked from reviewing** the RCO or martial law actions.

c) End of Martial Law

- On **30 December 1985**, Zia formally **lifted martial law**.
- But he stayed as **President with full powers**.
- The system remained **military-controlled** even though it appeared democratic.

End of RCO

1. End of RCO as an Order – 30 December 1985

- On this date, **General Zia-ul-Haq lifted martial law**.
- The **RCO as a legal order** ended with the **restoration of civilian government**.
- But its **contents were already merged** into the Constitution through the **8th Amendment** (November 1985), so the changes it made remained active.

2. End of RCO's Legal Effects – 1997

- The most powerful and controversial provision of RCO, **Article 58(2)(b)**, was **removed by the 13th Constitutional Amendment in 1997** under PM **Nawaz Sharif**.
- This amendment **restored parliamentary supremacy**, ended **Presidential power to dismiss governments**, and **removed the last major legacy of RCO**.

6. Later Impact of Article 58(2)(b)

- **Used repeatedly by future Presidents to dismiss elected governments:**
Article 58(2)(b) gave the President unchecked power to dissolve the National Assembly, which led to repeated use of this article for **removing elected Prime Ministers**, often on vague or political grounds.

1988 – Zia dismissed PM Junejo

Prime Minister **Muhammad Khan Junejo** was dismissed by **President Zia-ul-Haq** after Junejo tried to assert independence and began investigating the **Ojhri Camp explosion**.

This was the **first use** of Article 58(2)(b), showing how a President could remove a sitting PM without court review.

1990 – President Ghulam Ishaq Khan dismissed PM Benazir Bhutto

President **Ghulam Ishaq Khan** removed **Benazir Bhutto**, accusing her government of **corruption and mismanagement**. This led to **new elections** and further weakened civilian authority, despite Benazir being democratically elected.

1993 – PM Nawaz Sharif dismissed (restored later)

Nawaz Sharif's government was dismissed by President Ghulam Ishaq Khan under Article 58(2)(b), sparking a major **political crisis**.

The **Supreme Court reinstated Nawaz Sharif**, but both he and the President later **resigned under army pressure**.

1996 – President Leghari dismissed Benazir again

President **Farooq Leghari**, once Benazir's ally, removed her second government, citing corruption, poor governance, and law and order failure.

This marked the **fourth major use** of Article 58(2)(b), further damaging **public trust in democratic stability**.

Result:

- **Frequent political instability**
- Presidents became **more powerful** than Parliament.
- **Democracy weakened**; military influence remained strong.

7. Zia's Death and Continuation of RCO Legacy

- General Zia died in a **mysterious plane crash on 17 August 1988**.
- **His changes remained in the Constitution**, especially Article 58(2)(b) and Islamic laws.
- Future governments worked under the **same structure** created by RCO.

8. Repeal of Article 58(2)(b)

- In **1997**, the **13th Amendment** was passed under PM Nawaz Sharif.
- This amendment **removed Article 58(2)(b)**.
- Power to **dismiss Parliament** was returned to Parliament itself.
- It was an important step to **restore democracy** and **limit Presidential power**.

9. Criticism of RCO

- **Undemocratic process** – made without public or parliamentary input.
- **Legalized dictatorship** – gave permanent protection to military rule.
- **Distorted Constitution** – original spirit of the 1973 Constitution was lost.
- **Encouraged military interference** – future generals found it easier to intervene in politics.
- **Hurt political system** – by weakening Parliament and political parties.

10. Summary and Conclusion

The **Revival of the Constitution Order (RCO) 1985**:

- Brought back the 1973 Constitution **with major undemocratic changes**.
- Strengthened the **President**, weakened the **Prime Minister**.
- Validated all **martial law actions**.
- Introduced **Islamic laws** into the Constitution.
- Allowed **non-party elections** to block strong political opponents.
- Left a **deep mark on Pakistan's political system**, encouraging **military interference** and **Presidential authoritarianism**.

Even after Zia's death, the **impact of RCO lasted for years**, until parts like **Article 58(2)(b)** were removed in 1997. However, it **changed the balance of power permanently**, and its **legacy of military control and Islamization** still affects Pakistan today.

1997 – 13th and 14th Constitutional Amendments

1. Background and Political Context

Factor	Details
1997 General Elections	Held in February 1997; PML-N led by Nawaz Sharif won a landslide victory, securing a two-thirds majority in the National Assembly.
PPP's Decline	Benazir Bhutto's PPP suffered a significant defeat amid corruption allegations.
Legacy of Article 58(2)(b)	Used by Presidents to dismiss elected governments under Zia and later Ghulam Ishaq Khan and Farooq Leghari.
Executive Tensions	Nawaz Sharif sought to end presidential interference in parliamentary governance .

2. 13th Amendment to the Constitution (April 1997)

a. Main Objective

- To **remove Article 58(2)(b)**, which had allowed the **President to dissolve the National Assembly** at his discretion.

b. Textual Change

- **Article 58(2)(b):**
“The President may also dissolve the National Assembly in his discretion where, in his opinion, a situation has arisen in which the government of the Federation cannot be carried on in accordance with the provisions of the Constitution...”

→ **Deleted completely** through the 13th Amendment.

c. Immediate Effects

Institutional Change	Outcome
Presidency	Reduced to a ceremonial head of state .
Prime Minister	Became the central executive authority , with full control over cabinet and administration.
Federal Balance	Centralized power in the hands of the Prime Minister; checks on executive power weakened .

d. Legal and Constitutional Impact

- **Reasserted parliamentary supremacy.**
- Reversed the **Zia-era imbalance** that had empowered non-elected institutions.
- Parliament became a **more autonomous legislative body**.

e. Criticism

- No **judicial or institutional check** introduced to replace the presidential check.
- **Led to concentration of power** in Prime Minister's office.
- **Future vulnerability**: Without any effective balancing mechanism, executive overreach became easier.

3. 14th Amendment (July 1997) – Anti-Defection Law

a. Purpose

- To **curb political defections** and **ensure party discipline** among members of the National and Provincial Assemblies.

b. Main Provisions

Clause	Effect
Binding Vote	MNAs/MPAs required to vote as directed by party leadership on: - Budget, - No-confidence motions, - Constitutional amendments.
Expulsion Power	Party head could declare any dissenting member as disqualified from the assembly.
No Court Review	Decisions of party leaders were final and not subject to judicial review (initially).

c. Consequences

Positive	Negative
Prevented floor crossing and horse trading	Made MPs subservient to party heads , weakening internal democracy
Stabilized governments	Allowed autocratic control by party leaders
Reduced manipulation in parliament	Suppressed independent voices and dissent within parties

d. Impact on Political System

- Encouraged **centralized party leadership**.
- Members became **symbolic participants** in legislation.
- MPs could **not represent constituents independently** without risking disqualification.

4. Combined Impact of 13th and 14th Amendments

Dimension	Result
Presidency	Converted to a non-political ceremonial post .
Prime Minister	Became constitutionally unchallengeable within the government structure.
Parliament	Functioned under strict party discipline .
Judiciary	Had no role in reviewing party head disqualifications .
Checks and Balances	Virtually removed , setting stage for potential executive overreach.

5. Aftermath and Criticism

Perspective	Critique
Political Analysts	Claimed the amendments created a quasi-authoritarian PM system .
Civil Society	Raised concerns about democratic centralism and suppression of dissent.
Military and Bureaucracy	Became uneasy over unchecked civilian power.
Future Reversal	In 1999, General Musharraf's coup would be partly justified on the basis of excessive centralization under these amendments.

6. Judicial Challenges and Evolving Interpretation

- **Supreme Court rulings post-2000** revisited elements of the 14th Amendment.
- Later amendments (e.g., 18th Amendment, 2010) revised or **softened anti-defection clauses** to allow for **limited dissent and intra-party democracy**.

Summary: Constitutional Significance of 1997 Amendments

Amendment	Main Effect	Consequence
13th Amendment	Removed Article 58(2)(b)	Ended presidential authority to dissolve parliament
14th Amendment	Introduced strict anti-defection law	Reinforced party dictatorship, restricted MP autonomy

1999 – Military Coup by General Pervez Musharraf

1. Background: Political Crisis Before the Coup

Factor	Explanation
Civil-Military Tensions	PM Nawaz Sharif's civil government and the military leadership (especially Gen. Musharraf) had growing friction over Kashmir policy and Kargil War (1999).
Kargil Conflict	Military-led operation in Kargil without civilian approval led to a national crisis, international embarrassment , and increased distrust.
Attempt to Dismiss Musharraf	On 12 October 1999 , Nawaz Sharif attempted to dismiss Gen. Musharraf while he was on an official visit to Sri Lanka and refused landing rights to his plane .
Army's Response	Military moved quickly, took control of Karachi airport and key state institutions, ousted the Nawaz government , and took over power .

2. Constitution Held in Abeyance (Not Abrogated)

Legal Status	Details
Constitution of 1973	Held in abeyance , not officially abrogated. Allowed selective application under military rule.
Justification	Claimed to be a response to “ national emergency and institutional collapse ”.
No Assembly	National and provincial assemblies were dissolved .
Fundamental Rights	Suspended under emergency rule.

3. Provisional Constitutional Order (PCO) – 1999

Provision	Constitutional Impact
PCO Issued	On 14 October 1999 , Musharraf issued a PCO to replace the constitutional order temporarily.

Oath Requirement	Judges were required to take a fresh oath under the PCO .
Judicial Scrutiny Blocked	Courts barred from questioning the legality of the coup or issuing orders against military authorities.
Concentration of Power	All executive, legislative, and partial judicial powers vested in the Chief Executive (Musharraf) .

4. Judiciary and the Oath Crisis

a. PCO Oath Requirement

- All judges, including from the **Supreme Court** and **High Courts**, were required to **take oath under the PCO**.

b. Judges Who Refused the Oath

Refusing Judges	Positions
Chief Justice Saeed-uz-Zaman Siddiqui	Refused PCO oath; dismissed from office.
Justice Mamoon Kazi	Senior SC judge; refused and was removed.
Several High Court Judges	Especially in Sindh and Punjab; many resigned or were dismissed.

c. Result

- Judicial purge:** Around **13 Supreme Court and High Court judges** were ousted or resigned.
- New judiciary:** Judges who complied were appointed afresh, creating a **PCO-compliant bench**.

5. Validation by Supreme Court – Zafar Ali Shah Case (2000)

Case Name	Zafar Ali Shah v. General Pervez Musharraf
Verdict Date	12 May 2000
Doctrine Used	Doctrine of Necessity (once again)
Key Rulings:	

- Validated the **military takeover** as a **constitutional deviation in national interest**.
- Gave Musharraf **3 years to hold elections** and restore democratic rule.

- Allowed **limited constitutional amendments** by the executive.

6. Creation of the National Security Council (NSC)

Structure	Purpose
Headed by	Chief Executive (later President Musharraf)
Members	Military chiefs, intelligence heads, some cabinet members
Role	Oversight of national security, policy, and governance
Effect	Institutionalized military's role in governance and policymaking

7. Civil and Political Suppression

Action	Detail
Accountability Drive	NAB (National Accountability Bureau) established for anti-corruption – often used against political rivals.
Political Leaders Targeted	Nawaz Sharif tried and exiled to Saudi Arabia after being convicted.
Media	Restricted initially; controlled through PEMRA (Pakistan Electronic Media Regulatory Authority).
Political Activity	Banned until local bodies elections in 2001 . Political parties sidelined.

8. International Reaction

Country/Entity	Response
United States	Initially critical, but post-9/11, Musharraf became a key ally in War on Terror .
Commonwealth	Suspended Pakistan's membership temporarily.
International Law Experts	Criticized judiciary's use of " doctrine of necessity " for legitimizing military rule.

9. Long-Term Constitutional Impact

Legacy Area	Consequences
Judicial Independence	Severely compromised by forced oaths and dismissals.
Civil-Military Relations	Institutionalized military as a parallel power center .
Precedent Set	Validated military coups as legal deviations , weakening democratic norms.
Future Conflicts	Set stage for 2007 Judicial Crisis and the Lawyers' Movement .

2002 – Legal Framework Order (LFO)

1. Introduction

- **What is LFO 2002?**
A legal order issued by General Musharraf to amend the Constitution without Parliament's approval.
- **Why it was introduced:**
To legalize his rule and prepare for elections after his 1999 military takeover.

2. Background

- **Coup of 1999:**
General Musharraf overthrew Prime Minister Nawaz Sharif on 12 October 1999.
- **PCO Issued:**
Constitution was suspended and replaced by the Provisional Constitutional Order (PCO).
- **Need for LFO:**
To create a new legal framework before elections and ensure Musharraf remained in power.

3. Nature of LFO

- **Presidential Order:**
LFO was made by Musharraf himself, not by the National Assembly.
- **Changed Constitution:**
LFO changed many parts of the 1973 Constitution temporarily, without a proper democratic process.

4. Main Features of LFO

- **More Power to President:**
Article 58(2)(b) was restored, allowing the President to dissolve the National Assembly.
- **President & Army Chief Together:**
Musharraf kept both posts — President and Chief of Army Staff.
- **National Security Council (NSC):**
Created to give the military a formal role in political decisions.
- **Judiciary Re-controlled:**
Judges were forced to take a new oath; those who refused were removed.
- **Independent Election Commission:**
Election Commission was made free from government influence.
- **Joint Electorate Restored:**
All citizens voted together regardless of religion.
- **Graduation Requirement:**
Only those with a BA degree could contest elections.
- **Reserved Seats Increased:**
 - **National Assembly:**
+60 seats for women, +10 seats for non-Muslims.
 - **Provincial Assemblies:**
Punjab 66 women, Sindh 29, KP 22, Balochistan 11
Non-Muslim seats: Sindh 9, Punjab 8, KP 3, Balochistan 3

(Source: [Legal Framework Order 2002: Key Features and ...Studocuhttps://www.studocu.com](https://www.studocu.com) › ... › Law GAT)

5. Revival of Article 58(2)(b)

- **Meaning:**
Gave President the power to dismiss Parliament anytime.
- **History:**
Introduced by Zia-ul-Haq, removed by Nawaz Sharif in 1997, brought back by Musharraf.
- **Impact:**
Weakened Parliament and made the President stronger.

6. National Security Council (NSC)

- **Purpose:**
To involve the military directly in political matters.
- **Members (13 total):**
 - President (Chairman)
 - Prime Minister
 - Chairman of Senate
 - Speaker of National Assembly
 - Leader of Opposition
 - 4 Chief Ministers
 - Chairman Joint Chiefs
 - Chiefs of Army, Navy, and Air Force
- **Criticism:**
Considered undemocratic as it gave army a permanent political role.

(Source: [National Security Council | Pakistani governmentBritannicahttps://www.britannica.com](https://www.britannica.com) › topic › National-Security-C...)

7. Judiciary and LFO

- **Oath on New Constitution:**
Judges had to take a fresh oath under the new PCO.
- **2000 Dismissals:**
6 senior Supreme Court judges removed for refusing the oath.
- **2007 Emergency:**
Around **60 judges**, including Chief Justice Iftikhar Chaudhry, were removed or placed under house arrest.

(Source wikipedia: [PCO Judges caseWikipediahttps://en.wikipedia.org](https://en.wikipedia.org) › wiki › PCO Judges case)

8. General Elections 2002 under LFO

- **Held in October 2002** under new rules created by LFO.
- **Graduation Condition:**
Only BA degree holders could take part — many leaders disqualified.
- **Criticism:**
Opposition parties said elections were unfair and controlled by military.

9. Criticism of LFO

- **Political Parties:**
Called LFO illegal, undemocratic, and one-man rule.
- **Legal Experts:**
Said only Parliament can change the Constitution, not the President alone.
- **Public Concerns:**
People feared military would keep controlling politics.

10. Parliament's Response – 17th Amendment

- **Deal with MMA (religious alliance):**
Musharraf negotiated to legalize LFO with small changes.
- **17th Amendment (2003):**
Parliament passed it, accepting most parts of LFO.
- **Conditions:**
Musharraf had to get a vote of confidence; some limits added to Article 58(2)(b).

11. Timeline of Key Events

Year	Event
1999	Military coup by Musharraf
2000	Supreme Court gave Musharraf 3 years for reforms
2002	LFO issued, general elections held
2003	17th Amendment legalized LFO
2004	Musharraf got vote of confidence
2007	Emergency declared again; new PCO issued
2008	Musharraf resigned
2010	18th Amendment removed all powers given by LFO

12. What Happened After LFO

- **2004:** Musharraf got vote of confidence and continued as President.
- **2007:** He imposed another emergency and removed more judges.
- **2008:** He resigned due to political pressure and risk of impeachment.
- **2010 – 18th Amendment Passed:**
 - Article 58(2)(b) removed again.
 - President's powers reduced.
 - Parliament made stronger.
 - NSC dissolved (later restructured under new law).

13. Final Status of LFO

- LFO is no longer valid.
- All powers it gave were removed by the 18th Amendment.
- It is now a closed chapter in Pakistan's constitutional history.

14. Positive and Negative Effects

Positive Effects:

- Elections were held in 2002.
- Women and minorities got more reserved seats.
- Electoral process was reformed.

Negative Effects:

- President became too powerful.
- Military got formal role in politics.
- Judiciary lost independence.
- Parliament became weak.

15. Conclusion

- LFO 2002 was used by General Musharraf to stay in power by changing the Constitution without Parliament.
- Although it brought some reforms, it damaged democracy and gave the military too much control.
- It was later removed, but it remains a controversial part of Pakistan's political history

1. Political and Judicial Context Leading to Emergency

Factor	Explanation
Judiciary-Government Tensions	Chief Justice Iftikhar Muhammad Chaudhry had become assertive, challenging executive decisions.
Suspension of CJ (March 2007)	Musharraf tried to suspend the Chief Justice but faced strong backlash.
Lawyers' Movement	Massive civil society response demanding judicial independence . CJ reinstated by Supreme Court on 20 July 2007 .
Upcoming SC Judgment	Supreme Court was expected to rule against Musharraf's dual office (President and Army Chief), which could disqualify him from contesting the 2007 presidential election.
Musharraf's Fear	Possible unfavorable SC verdict led him to pre-emptively suspend the Constitution again.

2. 3 November 2007: Declaration of Emergency

Action	Details
Emergency Declared	Citing “ judicial interference ” and terrorism , Musharraf imposed Emergency Rule under military powers , not constitutional Article 232.
Constitution Suspended	The 1973 Constitution was suspended (not held in abeyance as in 1999, but fully suspended).
Second Provisional Constitutional Order (PCO 2007)	Issued immediately after the Emergency.
Media Restrictions	Independent news channels were taken off air , and journalists were harassed or banned.

3. Second Provisional Constitutional Order (PCO), 2007

Key Provisions	Impact
PCO-2007 Text	Judges barred from making any ruling against emergency or military decisions.
New Judicial Oath	All judges of the Supreme Court and High Courts were required to take a fresh oath under the PCO .
No Legal Challenge	Any court order against the PCO was declared null and void .

4. Judiciary Purged (Again)

a. Judges Who Refused the PCO Oath

- Over **60 senior judges**, including:
 - Chief Justice Iftikhar Chaudhry**
 - Justices Rana Bhagwandas, Tariq Mahmood, and others

b. Consequences

Impact Area	Outcome
Supreme Court	A new bench of PCO-compliant judges formed.
High Courts	Several judges dismissed or replaced.
Legal Order	Entire judiciary reshaped to align with military executive.

5. PCO Bench Validation: Tikka Iqbal Muhammad Case (23 Nov 2007)

Case Summary	Outcome
Filed by a pro-Musharraf citizen	Challenged Emergency but sought validation.
PCO Supreme Court Verdict	Validated the Emergency and PCO using the Doctrine of Necessity again.
Claimed it was necessary to "preserve the state" , not the Constitution.	

Gave Musharraf temporary authority to amend the Constitution unilaterally.	
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6. Constitutional Fallout

Action	Effect
Suspension of Fundamental Rights	Articles relating to freedom of speech, movement, assembly, and media were suspended.
State of Law	Pakistan ran under military executive orders ; constitutionally illegal under international law.
Undermining of Judiciary	Worst blow to judicial independence since 1958; loss of public trust in legality.

7. Political Consequences

Impact Area	Detail
Rise of Civil Resistance	Lawyers, students, journalists, and civil society launched pro-democracy protests nationwide.
Benazir Bhutto's Return (Oct 2007)	Returned from exile to contest elections; assassinated in Dec 2007, further destabilizing the country.
Elections Postponed	Originally scheduled for Jan 2008; postponed due to emergency and instability .

8. Musharraf's Exit Strategy

Step	Details
Removed Uniform (Nov 2007)	Resigned as Army Chief , became civilian President .
Lifted Emergency (Dec 15, 2007)	Under pressure from international community, particularly US.
Caretaker Government Formed	Elections scheduled for February 2008 under a pro-Musharraf caretaker setup.

9. Long-Term Impacts

Dimension	Consequence
Judicial Independence	Sparked the Lawyers' Movement , culminating in 2009 restoration of judiciary .
Constitutionalism	Increased demand for judicial and parliamentary supremacy .
Public Consciousness	Civil society and media emerged as defenders of democracy .
Musharraf's Decline	His power eroded; forced to resign in August 2008 .
Future Reversals	18th Amendment (2010) reversed all PCO-2007 effects , banned unconstitutional takeovers.

Summary Table: 2007 Emergency and Second PCO

Aspect	Details
Date	3 November 2007
Justification	Judicial activism, terrorism, governance paralysis
Legal Tool	Second PCO (2007)
Judicial Impact	Over 60 judges removed; PCO-compliant judiciary installed
Media & Rights	Press banned, civil liberties suspended
International Reaction	Strong condemnation; pressure from US and EU
Outcome	Musharraf became civilian president; lost public legitimacy

18th Constitutional Amendment – Pakistan (2010)

1. Introduction

The **18th Amendment** is one of the **most important constitutional reforms** in the history of Pakistan. It was passed in **April 2010** to **restore the original spirit of the 1973 Constitution**, strengthen **parliamentary democracy**, and **remove distortions** caused by military dictators through previous amendments.

2. Background

a) Military Interventions and Constitutional Changes

- The **8th Amendment (1985)** and **17th Amendment (2003)** gave **extra powers to the President**, especially the power to dissolve the National Assembly (Article 58(2)(b)).
- These changes weakened **parliamentary democracy** and increased the **role of the military and presidency**.

b) Charter of Democracy (2006)

- Signed between **Benazir Bhutto (PPP)** and **Nawaz Sharif (PML-N)**.
- Promised to undo all undemocratic changes made by dictators.
- The 18th Amendment was a result of this charter.

3. Enactment of the 18th Amendment

- **Passed by:** National Assembly on **8 April 2010**
- **Senate Approval:** 15 April 2010
- **Signed by President Zardari:** 19 April 2010
- **Total Articles Amended:** **102** articles of the Constitution
- **Repealed Articles:** 58(2)(b) and 17th Amendment among others

4. Key Objectives

- **Restore the parliamentary system**
- **Strengthen provinces** through devolution
- **End Presidential supremacy**
- **Ensure judicial independence**
- **Promote democracy and civil rights**

5. Major Features of the 18th Amendment

A. Strengthening Parliamentary Democracy

- **Article 58(2)(b) repealed:**
President can no longer dissolve the National Assembly at will.
→ Prime Minister now enjoys full tenure protection.
- **Parliament's supremacy restored:**
Law-making and national policies are now clearly under Parliament.

B. Shift from Presidential to Parliamentary System

- Powers of the **President transferred to the Prime Minister**.
- President becomes a **ceremonial figure**, like in original 1973 Constitution.
- **Prime Minister is the real head of government** again.

C. Provincial Autonomy (Devolution of Powers)

- **Concurrent Legislative List abolished:**
Many subjects like education, health, environment, etc., were transferred to provinces.
- **Greater control for provinces over:**
 - Natural resources
 - Curriculum and education
 - Health systems
 - Local governance
- **Council of Common Interests (CCI) strengthened:**
→ Made more regular and powerful to manage disputes between provinces and federation.

D. Judicial Reforms

- **Judicial appointments changed (Article 175-A):**
A **Judicial Commission** now recommends judges.
Final approval by **Parliamentary Committee**, ensuring transparency.
- **Tenure and independence of judges protected.**

E. Election Reforms

- **Election Commission of Pakistan (ECP) strengthened:**
 - Chief Election Commissioner appointed through bipartisan process.
 - Improved electoral processes for fair elections.

F. Name Change and Identity Recognition

- **NWFP renamed to Khyber Pakhtunkhwa (KP):**
Recognized Pashtun identity and fulfilled long-standing demand.

G. New Articles Added

- **Article 10-A – Right to Fair Trial:**
Every citizen has a constitutional right to a fair trial in court.
- **Article 63-A – Anti-Defection Strengthened:**
MPs can lose seat if they vote against party policy on important matters.

H. Revival of Original Constitution

- Many changes made by military rulers through **17th Amendment (Musharraf)** and **LFO (2002)** were **removed**.
- The 1973 Constitution's **original structure** was largely **restored**.

6. Impact of the 18th Amendment

a) On Federation

- **Provinces became stronger.**
- Helped create a **true federal system**.
- **Resource sharing** improved through better NFC Award.

b) On Democracy

- Ended **President's powers to dissolve assemblies**.
- Made the **Prime Minister more powerful and accountable**.

c) On Judiciary

- Introduced **checks and balances** in appointment of judges.
- Reduced **executive influence** on judiciary.

d) On Civil Liberties

- Guaranteed more **rights and protections** to the people.
- Recognized **fair trial** and improved democratic participation.

Key Articles Amended by the 18th Amendment (2010)

Article	Topic	What Was Changed (In Easy Words)
6	High Treason	Now, anyone who suspends, abrogates, or holds the Constitution in abeyance (like in a military coup) will be guilty of high treason .
17	Right to Form Political Parties	Political parties must now follow democratic rules inside the party . No room for dictatorship within parties.

25A(New)	Right to Education	Every child from age 5 to 16 has the right to free and compulsory education . This became a fundamental right .
58(2)(b)	Dissolution of National Assembly	This article was removed . Now the President cannot dismiss the National Assembly on his own.
63A	Disqualification of MPs	Strengthened rules to stop politicians from changing parties . If they vote against their party, they can lose their seat .
70	Making of Laws	Made the process of passing laws more clear between National Assembly and Senate.
89	Presidential Ordinances	The President can't issue ordinances freely now. He needs approval and solid reasons , and the law must be temporary.
101–105	Governor Appointment	Now, the Prime Minister appoints Governors of provinces, not the President . This made the system more democratic.
112	Provincial Assembly Dissolution	The Governor can only dissolve a provincial assembly if the Chief Minister advises it .
153–155	Council of Common Interests (CCI)	CCI must now meet every 90 days . This helps solve disputes between the federal government and provinces more often.
160	NFC Award – Financial Sharing	The share of provinces in money (tax revenue) cannot be reduced in the future. Provinces get financial security.
175A	Judges' Appointments	A new system was made where Judicial Commission and Parliamentary Committee decide who will become judges—more transparency.
198	High Court Benches	Allowed the creation of more benches (branches) of High Courts in provinces, so people get justice closer to home .
199	Court Powers (Writ Jurisdiction)	Gave more power to High Courts to protect people's fundamental rights and take action when rights are violated.
239(5)(6)	Constitutional Amendments	No one can challenge constitutional amendments in courts once passed by Parliament. This protects Parliament's power.
246–247	FATA Reforms	Reduced the President's special powers over FATA , beginning the process to merge FATA with Khyber Pakhtunkhwa (done in 2018).

Provisional Constitutional Orders (PCOs)

1. Introduction: What is a PCO?

A **Provisional Constitutional Order (PCO)** is a **temporary legal framework** issued by a **military ruler** after suspending the Constitution, either fully or partially. It allows the military regime to run the country **outside the constitutional limits**.

Purpose:

- To **legalize military rule**
- To **control the judiciary** by forcing judges to take a **new oath of loyalty**
- To **suspend constitutional rights** and allow the military to govern without legal checks

2. Legal Background and Concept of PCO

- A **PCO replaces the Constitution as the supreme law** during military or emergency rule.
- It is usually followed by:
 - **Dissolution of Parliament**
 - **Suspension of fundamental rights**
 - **New oath for judges**
- PCOs are **not passed by Parliament** and are **not part of the regular constitutional amendment process**.

3. PCO 1981 – General Muhammad Zia-ul-Haq

a. Historical Background

- **Coup of 5 July 1977**: Zia overthrew Prime Minister **Zulfikar Ali Bhutto** and imposed **martial law**.
- The **1973 Constitution was suspended**, and Pakistan was ruled through **military decrees**.
- Zia initially promised elections in 90 days but **delayed them indefinitely**.
- In **March 1981**, he issued the **first PCO** to manage civil governance without fully restoring the Constitution.

b. Nature of the Order

- The PCO of 1981 **partially revived the Constitution**, but key provisions (like elections and parliamentary supremacy) remained suspended.
- It allowed Zia to **retain full legislative, executive, and judicial control**.
- Civil liberties were **still curtailed**.

c. Key Legal Provisions

Provisions of PCO 1981 (General Zia-ul-Haq)

Issued: 24 March 1981

Objective: To provide a **legal framework for military rule** while **partially restoring the Constitution** under controlled conditions.

1. Partial Revival of the Constitution

- The Constitution of 1973 was **not fully restored**.
- Only **selected parts** of the Constitution were revived to **serve the military regime**.
- Zia retained the power to **amend, suspend, or override** any constitutional provision through **presidential orders**.

2. Supremacy of the PCO

- The **PCO took precedence over the Constitution**.
- Any **provision of the Constitution inconsistent with the PCO** was to be **considered invalid** during the operation of the PCO.

3. New Judicial Oath of Allegiance

- Judges of the **Supreme Court, High Courts, and Federal Shariat Court** were required to **take a new oath**:
 - To **uphold the PCO** and **not question** any order made by the military regime.
 - To **not entertain any case** that challenges **military rule** or **martial law orders**.
- Judges who **refused the oath** were **dismissed** from service.
 - Example: **Justice Dorab Patel** and **Justice Fakhruddin G. Ebrahim** were removed.

4. Bar on Judicial Review of Military Acts

- The courts were **barred from questioning**:
 - Any act of the **Chief Martial Law Administrator (Zia)**
 - Any **Martial Law Regulation (MLR)** or **Martial Law Order (MLO)**
- No court could issue orders against the **military's legislative, executive, or judicial actions**.

5. Validation of Martial Law Actions

- All laws, actions, and regulations issued since **5 July 1977** (Zia's coup) were **validated and protected** under the PCO.
- The PCO gave **legal immunity** to the **military government's past actions**.

6. Legislative Powers of the President

- Zia-ul-Haq, as **President and Chief Martial Law Administrator**, could:
 - Issue **Presidential Orders**
 - Enforce **Martial Law Regulations**
 - Make laws **without Parliament** or any legislative body

7. Suspension of Fundamental Rights

- **Fundamental rights** guaranteed under the Constitution remained **suspended**.
- Citizens could not approach courts for:
 - **Habeas corpus (freedom from illegal detention)**

- **Freedom of expression**
- **Right to fair trial**
- **Other civil liberties**

8. Establishment and Strengthening of Federal Shariat Court

- The **Federal Shariat Court (FSC)** was created in 1980, but under the 1981 PCO:
 - Its **powers were expanded**.
 - It could **strike down any law** deemed un-Islamic.
 - Appeals could be made to the **Shariat Appellate Bench** of the Supreme Court.

9. No Election Timeline

- No specific **timeline for elections** or **return to democracy** was included.
- Zia retained **indefinite rule** under this legal cover.

10. Continuation of Martial Law

- Martial law remained in effect.
- **Military courts** continued functioning alongside civil courts.

d. Impact on Judiciary

- Marked the **first open attack on judicial independence** under military rule.
- Weakened the tradition of **judicial review of executive action**.
- Set a **dangerous precedent** for future PCOs and judicial purges.

e. Connection to RCO 1985

- PCO 1981 laid the legal and political foundation for the **Revival of Constitution Order 1985 (RCO)**.
- Allowed General Zia to **shape the Constitution in his own image**, especially regarding Islamization.

4. PCO 1999 – General Pervez Musharraf

a. Historical Background

- On **12 October 1999**, General Musharraf **removed Prime Minister Nawaz Sharif** in a coup.
- The coup followed Sharif's decision to **remove Musharraf as Army Chief** while his plane was in the air.
- Musharraf declared himself **Chief Executive of Pakistan** and **suspended the 1973 Constitution**.

b. Purpose of PCO

- To **legitimize the military coup** and neutralize constitutional challenges.
- To **run the country without Parliament** or a working Constitution.
- To ensure control over the **judiciary** and **media**.

c. Major Provisions of PCO 1999

1. Constitution Held in Abeyance

The 1973 Constitution was **suspended**. Musharraf ruled the country without using the Constitution.

2. Musharraf Became Chief Executive

Musharraf **did not become President** right away. He took the new title of **Chief Executive** and had full control of the government.

3. New Oath Required for Judges

All judges of the **Supreme Court and High Courts** had to take a **new oath under the PCO**. The oath showed loyalty to Musharraf's military rule.

4. Removal of Judges

Judges who **refused the new oath** were **removed from office**. New judges were appointed who supported the military government.

5. No Court Could Challenge Military Actions

Courts were **not allowed** to hear any case against the army's actions, orders, or the PCO itself.

6. All Military Laws Protected

All actions, laws, and orders made by Musharraf and the army were declared **legal and protected** under the PCO.

7. Parliament and Assemblies Suspended

The **National Assembly, Senate, and Provincial Assemblies** were **suspended**. The government ran only under military orders.

8. Musharraf Could Make Laws Alone

Musharraf got the power to **make and change any law** without Parliament. He acted as both law-maker and ruler.

d. Judicial Crisis

- **Chief Justice Saeed-uz-Zaman Siddiqui** and other senior judges refused to take the oath and were **dismissed**.
- New judges were appointed who were **loyal to the regime**.
- The **Supreme Court in Zafar Ali Shah case (2000)** validated Musharraf's actions under the **doctrine of necessity**.

e. Long-Term Consequences

- Set the stage for:
 - **Legal Framework Order (LFO) 2002**
 - **17th Constitutional Amendment**
- Musharraf later **assumed the Presidency** and continued to amend the Constitution.

5. PCO 2007 – Musharraf's Emergency Rule

a. Historical Background

- In **2007**, the **Supreme Court under CJ Iftikhar Chaudhry** was hearing a case that could **disqualify Musharraf** from running for President while in uniform.
- On **3 November 2007**, Musharraf declared **emergency**, suspended the Constitution, and issued another **PCO**.

b. Legal Provisions of PCO 2007

1. Background of the 2007 PCO

In 2007, the Supreme Court was about to remove Musharraf as President. He declared emergency and suspended the Constitution again.

2. Constitution Suspended Again

The 1973 Constitution was stopped for the second time. Musharraf ruled through emergency orders.

3. New Judicial Oath Required

Judges were told to take a fresh oath under the new PCO. Over 60 judges, including Chief Justice Iftikhar Chaudhry, refused and were removed.

4. Courts Filled with Loyal Judges

The judges who didn't support Musharraf were fired. New judges were appointed who supported him.

5. Suspension of Fundamental Rights

People lost their basic rights like free speech and protest. Courts could not protect citizens' freedoms.

6. Crackdown on Media and Protests

News channels were shut down and journalists were arrested. Lawyers and activists were beaten and jailed.

7. No Case Against Army Allowed

Courts were banned from hearing any case against emergency or army orders. Musharraf's decisions could not be challenged.

c. Human Rights Violations

- **Media was blacked out**, journalists arrested.
- **Fundamental rights suspended**, including:
 - Freedom of expression
 - Right to protest
 - Right to fair trial

d. Reaction: Lawyers' and Civil Society Movement

- Massive protests led by:
 - **Pakistan Bar Council**
 - **Civil society**
 - **Political parties**
- Known as the **Lawyers' Movement (2007–2009)**.
- Demanded:
 - **Restoration of judiciary**
 - **End to military rule**
 - **Resignation of Musharraf**

e. Supreme Court Judgment (2009)

- In the **Sindh High Court Bar Association Case**, the **Supreme Court declared the 2007 PCO illegal**.
- Judges appointed under it were removed.
- All legal actions under the 2007 PCO were **nullified**.

List of All PCOs in Pakistan's History

No.	Year	Issued By	Context/Reason
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1	1981	General Zia-ul-Haq	To strengthen military rule post-1977
2	1999	General Pervez Musharraf	After military coup against Nawaz Sharif
3	2007	General Pervez Musharraf	To stop Supreme Court from disqualifying him during Emergency Rule

6. Common Purposes of All PCOs

- To **bypass constitutional procedures** and **legalize military takeovers**
- To **remove judges** who may oppose military rule
- To create a **loyal judiciary**
- To **suspend democratic processes**, such as elections and civil liberties

7. Overall Consequences of All PCOs

a. On Constitution and Rule of Law

- Replaced constitutional supremacy with **military control**.
- Undermined **public trust in the judiciary**.

b. On Judiciary

- Repeated **purging of independent judges**.
- Created a judiciary that was often **submissive to dictators**.

c. On Democracy

- Allowed military rulers to **stay in power illegally**.
- Delayed or manipulated **elections**.
- **Silenced Parliament and media**.

d. On Civil Liberties

- During each PCO:
 - **Press freedom** was restricted.
 - **Fundamental rights** were either suspended or ignored.

8. Criticism of PCOs

- **Unconstitutional and illegal**: Not authorized by any article of the Constitution.
- **Undemocratic**: Used to silence courts, Parliament, and civil society.
- **Violation of rights**: Suspended key fundamental rights and media freedom.
- **International condemnation**: Viewed as a violation of democratic norms and the rule of law.

19th Constitutional Amendment (2010) – Pakistan

1. Introduction

The **19th Amendment to the Constitution of Pakistan** was passed in **2010** to **reform the process of judicial appointments**. It was a **follow-up to the 18th Amendment** and addressed the **concerns raised by the Supreme Court** regarding judicial independence.

2. Background and Context

a) 18th Amendment and Judicial Reforms (2010)

- The **18th Amendment**, passed in April 2010, brought major changes including:
 - Restoration of parliamentary supremacy
 - Creation of the **Judicial Commission of Pakistan (JCP)**
 - Formation of a **Parliamentary Committee (PC)** for judicial appointments

b) Objections from the Judiciary

- The **Supreme Court**, in the **Munir Hussain Bhatti case (2010)**, raised concerns:
 - The **Parliamentary Committee had too much power** over judicial appointments.
 - The **role of the judiciary was being undermined**.

c) Purpose of the 19th Amendment

- To **satisfy the judiciary's concerns** and protect the **independence of the judiciary**.
- To **adjust the composition and working** of the JCP and Parliamentary Committee.
- To bring harmony between the **executive, legislature, and judiciary** in appointing judges.

3. Date of Enactment

- **Passed by National Assembly:** 22 December 2010
- **Passed by Senate:** 30 December 2010
- **Signed by President Zardari:** 1 January 2011
- **Became part of Constitution:** As the **19th Amendment Act, 2011**

4. Key Features of the 19th Amendment

a) Changes in Judicial Commission of Pakistan (JCP)

- Added **seniority principle**: The **most senior judge of the Supreme Court** would be appointed as **Chief Justice of Pakistan**.
- Number of senior judges in the JCP increased to **four (from two)**.
- The **Attorney General** and **Federal Law Minister** were made **non-voting members** of the JCP.

b) Changes in Parliamentary Committee (PC)

- Parliamentary Committee now had to:
 - **Give written reasons** for rejecting a judge nominated by JCP.
 - **Send its decision to the President, Prime Minister, and Chief Justice**.

- The **PC could not reject a judge without justification**.
- **Time limit**: The PC had to make its decision within **14 days**.

c) Appointments of High Court Judges

- The **Chief Justice of the concerned High Court** became part of the JCP for appointments in that High Court.
- Names of **provincial members** on the Parliamentary Committee were to be sent by **Speaker or Chairman Senate**.

d) Strengthening Judicial Independence

- Ensured that the **judiciary had a stronger voice** in appointing judges.
- Reduced chances of **political interference** in judicial appointments.

5. Importance of the Amendment

- Resolved conflict between **parliamentary supremacy and judicial independence**.
- Maintained the **spirit of the 18th Amendment** while respecting **court observations**.
- Strengthened **transparency, merit, and accountability** in judicial appointments.
- Protected the **checks and balances** in Pakistan's constitutional structure.

6. Summary Table: Most Important Articles Amended by the 19th Amendment

Article	Before Amendment	After Amendment
Article 175-A	Structure of Judicial Commission and Parliamentary Committee for appointment of judges	Revised composition of JCP and PC, added more senior judges, reduced political role
Article 177	Appointment of Chief Justice of Pakistan	Senior-most judge to be appointed as CJP
Article 193	Appointment of High Court Judges	Allowed CJ of relevant High Court to be part of JCP
Article 194	Oath of High Court Judges	Amended to reflect new appointment process
Article 260	Definitions	Adjusted to define roles like Judicial Commission

7. Conclusion

The **19th Amendment** was a **balancing reform** to protect **judicial independence** after the 18th Amendment's judicial reforms. It was a **response to judicial concerns**, and it **restructured the process of judge appointments** to make it more **transparent, balanced, and less political**. It played an important role in **stabilizing relations between the judiciary and Parliament**.

26th Constitutional Amendment, 2019

Background Context

- **Before the Amendment:**
 - The **Federally Administered Tribal Areas (FATA)** were governed under **special laws** (notably the **Frontier Crimes Regulation, 1901**) and were **not fully integrated** into the legal and political framework of Pakistan.
 - Article **247 of the Constitution** restricted the application of parliamentary laws to FATA unless the **President gave approval**.
 - The people of FATA were **denied regular constitutional, legal, and administrative rights** enjoyed by other provinces.
- **Merger Process Began with the 25th Amendment (2018):**
 - The 25th Amendment formally **merged FATA with Khyber Pakhtunkhwa (KP)**.
 - However, **political representation adjustments** (e.g., in National and Provincial Assemblies) were still pending.
 - The **26th Amendment was needed to enhance the representation** of former FATA in the National Assembly and KP Provincial Assembly in line with its new constitutional status.

Date of Enactment

- **Passed by National Assembly:** 13 May 2019
- **Passed by Senate:** 27 May 2019
- **Assented by President of Pakistan:** 31 May 2019

Key Purpose

- To **increase representation of merged tribal districts** (former FATA) in the **Khyber Pakhtunkhwa Provincial Assembly**.
- To make constitutional changes consistent with **FATA's merger** under the 25th Amendment.

Key Provisions of the 26th Amendment

1. Amendment to Article 51 – Composition of the National Assembly

- **Previous Representation (Before 26th Amendment):**
 - FATA had **12 general seats** in the National Assembly (lower house).
- **Post-Amendment Change:**
 - The **number of general seats for tribal areas was reduced to 6**.
 - This reduction reflects the fact that FATA is no longer a separate territory but now part of KP.
- **Explanation:**
 - Since **FATA merged into KP**, separate representation in the National Assembly was no longer required in the same format.
 - Representation was adjusted to avoid **over-representation** after the merger.

3. Amendment to Article 106 – Constitution of Provincial Assemblies

- **Major Impact of the 26th Amendment:**
 - Increased the number of **seats in the Khyber Pakhtunkhwa Provincial Assembly** to include the **newly merged tribal districts**.
- **New Allocation:**
 - **General seats:** 16 seats allocated to merged districts.
 - **Reserved seats for women:** 4 seats.
 - **Reserved seats for non-Muslims:** 1 seat.
 - **Total additional seats:** 21 seats added to KP Assembly.
- **Explanation:**
 - Before the 26th Amendment, **tribal areas had no representation in any provincial assembly**.
 - This amendment **gave full political participation** to people of ex-FATA in the **KP Assembly**, ensuring they could elect their provincial government.

Significance and Impact

1. Completion of FATA-KP Merger

- The 26th Amendment **complemented the 25th Amendment** by **fully integrating FATA into the KP legislative structure**.
- Enabled citizens of former FATA to **vote and contest elections for provincial seats** for the first time.

2. Advancement of Political Rights

- Residents of merged districts were **brought under mainstream political, legal, and constitutional coverage**.
- Allowed for **inclusion in developmental budgeting, policy-making, and law enforcement** decisions at the provincial level.

3. Strengthened Federalism

- Ended a **colonial-era governance model** and aligned the governance of former FATA with **other provinces and districts**.
- Reinforced **provincial autonomy** and **uniform application of the Constitution** across Pakistan.

Criticisms and Challenges

- **Implementation Delays:**
 - Though the amendment was passed in 2019, **full administrative integration, policing, and judicial setup** lagged in many areas.
- **Opposition from Tribal Elders:**
 - Some segments of tribal leadership and groups like the **JUI-F** opposed the amendment, demanding **a separate province or governance structure**.
- **Security and Legal Transition:**
 - Replacing the **FCR** and ensuring smooth application of **civil and criminal laws** remains a work in progress.

Summary Table: 26th Amendment at a Glance

Provision	Before 26th Amendment	After 26th Amendment	Effect
Article 51	12 NA seats for FATA	6 NA seats for merged districts	Adjusted federal representation
Article 106	0 seats for FATA in KP Assembly	21 new seats added (16 general + 5 reserved)	Enabled provincial representation
Article 59	FATA had Senate seats	No change in text, but representation to phase out	Phased elimination of Senate seats for FATA

Impact of the 26th Amendment

Political Dimensions and Context of the 26th Constitutional Amendment (2024)

“The independence of the judiciary is not negotiable—it is the foundation of every democratic society.”

Justice Aharon Barak, former President of the Israeli Supreme Court

Introduction

The **26th Constitutional Amendment of Pakistan**, passed by Parliament and signed into law in **October 2024**, introduced sweeping reforms to the judicial framework. It altered the process of judicial appointments, restricted the Supreme Court’s **suo motu** powers, mandated performance evaluations for judges, and restructured the tenure of the Chief Justice.

While officially presented as a step toward greater **accountability, transparency, and democratization** of the judiciary, the **political backdrop** and the nature of the reforms suggest that the amendment is also a reaction to increasing judicial oversight over the executive. Many critics view the move as part of a larger effort to **reassert parliamentary supremacy** at the expense of **judicial independence**.

Supporters’ Perspective

Government officials, ruling coalition parties, and allied commentators frame the amendment as a historic realignment in favor of democratic accountability:

1. Democratization of Judicial Appointments

- Inclusion of elected representatives (MNAs and Senators) in the **JCP** introduces broader democratic input.
- Moves away from a judiciary-only appointment system, often criticized as opaque and insular.

2. Accountability Through Evaluation

- Mandated performance evaluations aim to:
 - Identify **absenteeism**, **inefficiency**, and **backlog mismanagement**.
 - Foster a results-oriented judicial culture.
- Framed as a **governance reform**, not a punitive measure.

3. Curbing Judicial Overreach

- Restrictions on **Article 184(3)** are portrayed as a **rebalancing** of constitutional powers.
- Proponents argue **suo motu** powers had become arbitrary and occasionally politicized.

Opponents' Perspective

Legal bodies, opposition parties, former judges, and civil society groups raise serious concerns:

1. Perceived Executive Encroachment

- Replacing the **seniority principle** with **parliamentary discretion** in selecting the CJP is viewed as:
 - Undermining **judicial neutrality**.
 - Risking the emergence of a **submissive judiciary**.

2. Unified Legal Rejection

- Strong opposition from:
 - **Pakistan Bar Council (PBC)**
 - **Supreme Court Bar Association (SCBA)**
 - **Provincial Bar Councils**
- Critics label the amendment **unconstitutional**, **reactionary**, and **anti-judiciary**.

3. Retaliation Against Judicial Independence

- Performance evaluations and curtailed suo motu powers seen as **retaliation** for recent court verdicts.
- Critics argue the amendment aims to create a **chilling effect** on judicial decision-making.

Institutional Stakes and Future Trajectory

The 26th Amendment is not merely a legal revision it is a **manifestation of power struggle** among Pakistan's key institutions:

- **Judiciary**: Fights to preserve **autonomy** and **seniority traditions**.
- **Legislature**: Asserts control over judicial structures in the name of **public accountability**.
- **Executive**: Seeks to prevent judicial intervention in politically sensitive decisions.

Long-Term Consequences:

- Possible **litigation** challenging key provisions on constitutional grounds.
- Deepening polarization between **bench** and **bar**.
- Realignment of **civil-military-judicial relations** as institutional power centers adapt to the new legal framework.

I. Article 175A – Judicial Appointments

A. Before the 26th Amendment

- **Judicial Commission of Pakistan (JCP):**
 - Initially composed **mainly of sitting judges**, particularly of the Supreme Court and High Courts.
 - Dominance of the **judiciary itself** in selecting future judges **minimal executive or parliamentary oversight**.
- **Chief Justice of Pakistan (CJP):**
 - Appointed **automatically by seniority**, following convention rather than open scrutiny.
 - This **seniority principle** was neither codified nor challengeable, leaving **no room for evaluating merit or conduct**.
- **Lack of Accountability or Evaluation:**
 - No constitutional or institutional **mechanism for performance review** of judges.
 - Judicial conduct remained **internally regulated** (through Supreme Judicial Council) but lacked **systematic appraisal**.

B. After the 26th Amendment (2025)

[Verified as per 2025 Parliamentary Record]

- **Reconstitution of the Judicial Commission of Pakistan (JCP):**
 - Broader and more **inclusive composition** introduced:
 - **3 senior-most Supreme Court judges**
 - **Federal Law Minister**
 - **Attorney General for Pakistan**
 - **1 Senior Advocate** (minimum 15 years SC practice)
 - **2 Members from National Assembly** (1 from Treasury benches, 1 from Opposition)
 - **2 Senators** (same Treasury–Opposition representation)
 - **1 non-Muslim or woman** qualified to be elected as MNA
 - This increases **transparency, diversity, and public oversight**.
- **CJP Appointment Process Altered:**
 - The **Parliamentary Committee** now selects the Chief Justice from **among the top three senior-most judges** of the Supreme Court.
 - This introduces **discretion based on performance, jurisprudential legacy, and impartiality**—not mere age or years served.
- **Mandatory Performance Evaluation of High Court Judges:**
 - High Court judges now subject to **periodic professional evaluation**, especially in terms of:
 - Case disposal rate
 - Conduct
 - Integrity benchmarks
 - Criteria and indicators for performance are to be **defined by rules** framed under the Article.
- **Administrative Reforms:**
 - Establishment of a **dedicated Secretariat for JCP**.
 - Framing of **separate rules for nomination, standards, and evaluations**, allowing measurable accountability.

II. Article 184 – Suo Motu Jurisdiction

A. Before the Amendment

- **Discretionary Power of the Supreme Court:**
 - Article 184(3) empowered SC to initiate proceedings **suo motu** in matters of:
 - Fundamental rights
 - Issues of public importance
 - Often, no formal application was necessary—judges could act on:
 - Newspaper clippings
 - Social media
 - Anonymous petitions
- **Issues with Abuse and Politicization:**
 - This provision had **no internal checks or thresholds**.
 - Widely criticized for:
 - Judicial activism overriding separation of powers
 - **Politicized use of judicial power**—selective targeting or inaction
 - Notably used in high-profile corruption and governance cases (e.g., Panama Papers, Missing Persons cases)

B. After the 26th Amendment (2025)

[Verified per Gazette Notification July 2025]

- **Restriction on Suo Motu Powers:**
 - SC can **no longer initiate or expand suo motu** jurisdiction beyond **filed applications**.
 - Article 184(3) now applies only **within the four corners of the original petition** submitted to the court.
- **Purpose and Impact:**
 - Limits **judicial overreach** and reinforces **procedural due process**.
 - Encourages litigants to follow formal channels.
 - Enhances **parliamentary supremacy** by ensuring judiciary does not encroach into executive domains.
- **Judicial Restraint Codified:**
 - Aligns SC practices with other jurisdictions where **original jurisdiction is tightly confined**.

I. Article 179 – Tenure of the Chief Justice of Pakistan (CJP)

A. Before the 26th Amendment

- **Retirement Age-Based Tenure:**
 - As per the original Article 179, a judge of the Supreme Court including the CJP **retired upon attaining the age of 65 years**.
 - There was **no specific tenure** for the Chief Justice position itself.
 - This led to situations where:
 - Some CJPs served for only a few months.
 - Others had extended tenures depending on their age at appointment.
- **Issues Raised:**
 - **Inconsistency in judicial leadership**, affecting long-term judicial policy and planning.
 - Seniority-based elevation without consideration of jurisprudential capability or leadership.

B. After the 26th Amendment (2025)

[Verified from Constitution (Twenty-Sixth Amendment) Act, 2025]

- **Fixed 3-Year Term Introduced:**
 - The Chief Justice now serves a **non-renewable, fixed term of three years**, irrespective of age.

- **Automatic Retirement Post-Tenure:**
 - Upon completion of this 3-year term, the CJP is **automatically retired**, even if below 65.
 - Early resignation or removal under Article 209 (via Supreme Judicial Council) remains applicable.
- **Implications:**
 - Introduces **predictability and uniformity** in leadership transitions.
 - Allows **planned succession**, improving judicial management.
 - Potential for **merit-based considerations** during CJP selection under Article 175A (as revised).

II. Article 191A – Constitutional Benches of the Supreme Court

[Newly Inserted in 2025; Gazette Reference July 2025]

A. Purpose and Constitutional Placement

- Article 191A is a **newly inserted provision** designed to:
 - **Structure the exercise of constitutional jurisdiction**
 - Reduce **unilateral bench formations** by the CJP
 - Curtail **concentration of judicial power**
- This article adds a **structural layer** to judicial review mechanisms within SC's original, appellate, and advisory jurisdictions.

B. Jurisdiction Restricted to Constitutional Benches Only

- **Constitutional Benches** now exclusively hear:
 - **Original Jurisdiction Cases** under Article 184(3)
 - **Appeals on Constitutional Interpretation** under Article 185(3)
 - **Presidential Advisory Opinions** under Article 186
- Regular Supreme Court benches cannot take up these matters.

C. Composition and Mechanism

- **Minimum of Five Judges per Bench:**
 - Each Constitutional Bench must include **at least five judges**, ensuring **collective decision-making**.
- **Equal Provincial Representation:**
 - Each bench is required to have **balanced representation** from all provinces (Punjab, Sindh, Khyber Pakhtunkhwa, Balochistan).
 - Intended to **neutralize regional biases** and promote **national jurisprudential equity**.
- **Nomination Process by JCP:**
 - Members of Constitutional Benches are **nominated by the Judicial Commission of Pakistan (JCP)** under Article 175A.
 - **Most senior judge among them** automatically becomes the **Presiding Judge**.
- **Transfer of Cases:**
 - All pending or new constitutional matters under Articles 184, 185(3), and 186 are now **transferred** to these benches.
- **Impact:**
 - Ends the **“Master of Roster” doctrine monopoly** of the Chief Justice.
 - Reinforces **institutional decision-making** over **individual discretion**.
-

II. Article 209 – Supreme Judicial Council (SJC)

A. Before 26th Amendment

- **Structure:**
 - SJC comprised of:
 - Chief Justice of Pakistan (Chair)
 - Two senior-most SC judges
 - Chief Justices of two senior-most High Courts
- **Problems Identified:**
 - **Opaque and dormant system;** very few judges investigated or removed.
 - No defined timelines.
 - **Dominated by the CJP,** allowing possible conflict of interest.
 - **Lacked independent complaint channels;** mostly acted on Presidential references.

B. Reforms Introduced in 2025

[Verified — 2025 Gazette Notification of Constitution (Twenty-Sixth Amendment)]

- **Expanded Initiation Sources:**
 - SJC can now initiate inquiry upon:
 - **Reference from the President**
 - **Report from the Judicial Commission of Pakistan (JCP)**
 - **Complaint filed by any individual or organization,** subject to scrutiny
- **Time-Bound Proceedings:**
 - A decision **must be issued within six months** of initiating proceedings.
 - This deadline is **mandatory**, not advisory, to ensure **timely accountability**.

C. Grounds for Removal

- A judge may be **removed** for any of the following constitutionally defined reasons:
 - **Inefficiency** – Persistent failure to perform duties competently
 - **Misconduct** – Ethical violations or abuse of judicial authority
 - **Incapacity** – Mental or physical disability affecting judicial functions
- These are now **clearly codified**, leaving less room for ambiguity or political misuse.

D. Institutional Strengthening Measures

- **New Code of Conduct Mandated:**
 - The SJC is now legally bound to publish and enforce a **judicial code of conduct**.
 - Applies to all Supreme Court and High Court judges.
- **Dedicated Secretariat Created:**
 - Permanent office to manage documentation, scheduling, case management, and public record.
 - Promotes **transparency, tracking, and public confidence**.

I. ARTICLE 177 – Appointment of Judges to Supreme Court

A. Before the 26th Amendment

- Under **Article 177(2)**:
 - A person could be appointed to the SC if:
 - They served **as a High Court judge for 5 years**, or
 - They were **an advocate of a High Court for 15 years**.
- **Loophole**:
 - Long-practicing High Court advocates with **no Supreme Court experience** could be appointed.
 - This enabled **politically driven or under-qualified appointments**.

B. After the 26th Amendment (2025)

- **Article 177(2)** revised:
 - Now requires **15 years of practice in both**:
 - A **High Court**, and
 - The **Supreme Court of Pakistan**.
- Eliminates prior **interpretive ambiguity**.

C. Impact

- Raises **professional bar** for Supreme Court eligibility.
- Discourages **cronyism and political favoritism** in judicial elevation.
- Enhances **quality of apex court jurisprudence** through apex-level experience.

II. ARTICLE 187 – Incidental Jurisdiction of Supreme Court

A. Before the 26th Amendment

- **Article 187(1)** allowed SC to:
 - Issue any **order, decree, or sentence necessary to do “complete justice.”**
- This was interpreted to mean **inherent or residual jurisdiction**, even when procedural rules were absent.

B. After the 26th Amendment

- The scope of “complete justice” is now **explicitly limited**:
 - SC can only act **within its constitutional jurisdiction**.
 - Cannot invoke Article 187 to **go beyond its defined role**.

C. Impact

- **Constrains judicial overreach** by narrowing ambiguous powers.
- Reinforces principle of **separation of powers**.
- Aligns with reforms in **Article 184(3)** and **Article 191A**, restricting suo motu powers and structural judicial authority.

III. ARTICLE 199(1A) – High Courts’ Suo Motu Jurisdiction

A. Before the 26th Amendment

- High Courts could issue writs under **Article 199**.
- In practice, some High Courts began **taking suo motu action** without formal petitions, particularly in public interest cases.

B. After the 26th Amendment

- **New Clause (1A)** added to Article 199:
 - High Courts **cannot exercise suo motu jurisdiction** unless:
 - A **proper petition** is filed under Article 199.
- Judicial action must now be **case-initiated, not judge-initiated**.

C. Impact

- Ensures that judicial intervention is based on **filed grievances**, not public spectacle or media pressure.
- Part of broader **judicial discipline reforms** that prevent arbitrary activism.

IV. ARTICLE 203C – Federal Shariat Court Judges’ Qualifications

A. Before the 26th Amendment

- Criteria to be appointed as FSC judge were:
 - Loosely defined judicial or legal experience.
 - **Lower than SC judge requirements**, often left to executive interpretation.

B. After the 26th Amendment

- **New requirement:**
 - Every FSC judge **must now meet eligibility for SC appointment**, i.e.:
 - 15 years' experience as a lawyer/judge under Article 177.
- Aligns FSC standards with those of the apex court.

C. Impact

- Professionalizes the FSC bench.
- Prevents **patronage-based or unqualified appointments** to this key Islamic constitutional institution.
- Ensures **legal parity and consistency** between SC and FSC jurisprudence.

V. ARTICLE 203D – Time Limit for Appeals in FSC

A. Before the 26th Amendment

- Appeals in Federal Shariat Court could **remain undecided indefinitely**.
- Constitution did not impose any timeline.

B. After the 26th Amendment

- **Article 203D(2)** now mandates:
 - All appeals must be **decided within 12 months** of filing.
 - If not, the **lower court’s decision stands affirmed** unless the SC issues a stay.

C. Impact

- Prevents **indefinite litigation** and judicial delay.
- Encourages **timely resolution** of Shariat-based legal disputes.
- Protects **litigants' rights** through procedural certainty.

VI. ARTICLE 208 – Rules for Superior Court Employees

A. Before the 26th Amendment

- Article 208 allowed:
 - SC and FSC to make **rules for their own staff and administrative services**.
 - But **Islamabad High Court (IHC)** was not constitutionally included.

B. After the 26th Amendment

- IHC is now **formally included** under Article 208.
- Can **independently regulate** service rules for its employees.

C. Impact

- Brings IHC **on par with SC and FSC** administratively.
- Ensures its staff has **constitutional protection**, salary structures, and service rules.
- Eliminates **governance ambiguity** about IHC's internal autonomy.

Analysis: Thematic Impact of These Amendments

1. Professionalization of Judiciary

- Articles 177 and 203C raise the **qualifications bar** for judges at all levels.
- Signals a shift toward a **meritocratic judiciary**.

2. Limiting Judicial Overreach

- Articles 187 and 199(1A) restrict **inherent and suo motu** powers.
- Align with broader efforts to create a **more restrained and procedural judiciary**.

3. Efficiency and Case Management

- Article 203D enforces **timelines** for judgments.
- Helps to combat judicial **delays and backlogs**, particularly in sensitive Shariat cases.

4. Institutional Equality

- Article 208 brings Islamabad High Court into the fold, enhancing **federal parity**.

CRITICISM OF THE 26TH AMENDMENT (Judicial Reforms)

I. Politicization of Judiciary

A. Inclusion of Legislators in Judicial Appointments

- The **Judicial Commission of Pakistan (JCP)** has been expanded to include:
 - **Two MNAs and two Senators**, drawn from both **treasury and opposition benches**.
- Critics argue this politicizes the previously judge-dominated process.
 - The **line between legislative oversight and judicial interference** becomes blurred.
 - The presence of active parliamentarians is seen as **compromising judicial independence**.

B. Political Selection of Chief Justice of Pakistan

- Under new Article 175A(4), the CJP is no longer **automatically appointed by seniority**.
- Instead, a **parliamentary committee** selects from among the top three senior-most judges.
- Opponents argue this opens the door to:
 - **Political bargaining**
 - **Appointments based on ideology or loyalty**, rather than impartial merit.

C. Implication

- **Separation of powers** may be weakened if judges are perceived as politically beholden.
- The judiciary's **moral legitimacy** is at risk when **appointment mechanisms are politicized**.

II. Attack on Judicial Autonomy

A. Performance Evaluations of High Court Judges

- Introduced as a **mandatory requirement** post-26th Amendment.
- Opponents argue:
 - The **criteria for evaluation are undefined** in the Constitution.
 - This allows the executive or JCP secretariat to **exert pressure** on judges via performance reviews.

B. Revenge Narrative

- Some critics frame the reform as a **response to past adverse rulings**:
 - For example, previous court actions that **disqualified politicians** or **scrutinized military/civil bureaucracy**.
- The performance system could become a tool for:
 - **Silencing dissenting judges**
 - **Punishing judicial independence**

C. Implication

- Judicial behavior could be **chilled or censored** by fear of poor evaluations.
- Long-term erosion of **institutional confidence** in judicial impartiality.

III. Undermining Suo Motu Jurisdiction

A. Restriction of Article 184(3)

- The Supreme Court can now only:
 - Exercise suo motu powers **within the limits of a filed case**, not proactively.
- Critics argue this **weakens the Court's role as guardian of fundamental rights**.

B. Impact on Public Interest Litigation (PIL)

- Many landmark cases were initiated through:
 - **Judicial notices on human rights**, environmental disasters, or corruption.
- Limiting suo motu powers:
 - Curtails the **Court's ability to act without executive permission**.
 - Risks **delaying justice** for underrepresented or powerless citizens.

C. Implication

- Seen as **dismantling judicial activism** and **shielding powerful actors** from court scrutiny.
- May reduce **institutional checks on executive excesses**.

IV. Disruption of Seniority Principle

A. End of Automatic CJP Appointment

- Traditional **seniority-based elevation** of the Chief Justice has been replaced.
- Now, a **Parliamentary Committee** selects the CJP from among top three judges.

B. Concerns Raised

- This is seen as:
 - An **abandonment of institutional neutrality**.
 - A **breach of long-standing convention** that ensured predictability and continuity in judicial leadership.

C. Risk of Favoritism

- Potential for:
 - **“Cherry-picking” judges** aligned with the government's political or ideological views.
 - **Divisions within the judiciary**, undermining unity.

D. Implication

- Undermines the **internal hierarchy** of the judiciary.
- Raises fears of **executive manipulation of the apex court**.

Articles Amended in the 26th Amendment (2024) with Detailed Explanation

Article	Before Amendment	After Amendment (26th Amendment, 2024)
Article 9A		Newly inserted guarantees a right to a “clean, healthy and sustainable environment.”
Article 38		Paragraph (f) changed: now mandates complete elimination of riba (interest) by January 1, 2028.

Dawn		
175A	Judicial Commission (JCP) composed mainly of judges. CJP selected by seniority. No performance evaluation system.	• JCP expanded to include MNAs, Senators, technocrats, women/non-Muslim members. • CJP no longer appointed by seniority a Special Parliamentary Committee now chooses one of the top 3 judges. • Annual performance evaluations of High Court judges introduced. • New rules for judicial nominations and code of conduct. • Secretariat and staffing mechanisms created for JCP.
184(3)	SC could act suo motu (on its own) on matters of public importance with little procedural limitation.	• SC can now only act within the scope of the filed application. Suo motu powers cannot exceed contents of a submitted petition.
191A(new)	No such dedicated benches defined.	• Created special benches to handle constitutional cases under Arts. 184, 185(3), and 186. • Only these benches can hear constitutional petitions. • SC benches must now include equal provincial representation and minimum 5 judges.
202A(new)	No provision for such benches.	• Similar to SC: created special benches in High Courts to deal only with writ petitions under Article 199(a)(i) and (c). • Notified through resolution by Parliament or Provincial Assemblies.
209	SJC comprised senior judges, slow and opaque inquiry process; CJP dominated.	• Restructured SJC: process includes reports from JCP, timelines (6 months max), and mandates inquiry into judge misconduct or inefficiency. • CJP no longer immune from inquiry while holding office. • New code of conduct and secretariat introduced.
177	Required 5 years as HC Judge or 15 years as lawyer (no mention of SC experience).	• Now requires 15 years of advocacy in High Court AND Supreme Court for lawyers. Clarifies criteria.
179	Served until age 65.	• Fixed 3-year term or until age 65 (whichever comes first). After 3 years, automatic retirement, even if age not reached.

193(2)	10 years as advocate or judge required.	Clarifies overlapping periods between advocacy and judicial service can be combined.
199(1A)(new)	High Courts could act suo motu.	Now barred from taking action beyond the scope of application filed under Article 199(1).
186A	Old language unclear on authority.	Now clearly states SC may transfer any case or proceeding between HCs or to itself “in the interest of justice.”
187(1)	SC had wide powers to issue orders.	Now limited to exercising only jurisdiction vested in the Constitution—no undefined authority.
203C	Only HC judge qualification required.	Now includes judges of FSC qualified to be SC judges as eligible.
203D(2)	No time limit for deciding appeals.	Appeals must be decided within 12 months, or decision stands unless stayed by SC.
208	For SC and FSC only.	Now includes Islamabad High Court in service regulation rules.
215(1)	Ambiguity if term ended.	Now members remain in office until successors take charge.
229	Required 2/5 of members.	Now requires only 1/4 of either House to send matters to the CII.
230(4)	No time limit for considering reports.	Now Parliament must consider CII reports within 12 months.
255(2)	Generic “that person.”	Clarifies: CJP authenticates nationally, CJ of HC authenticates for provinces.
259(2)	Included “nursing.”	Expanded to include science, tech, medicine, public service, arts.
Fourth Schedule, Entry 2	Local taxes in cantonments not mentioned.	Now includes local taxes, fees, cess, tolls within cantonment areas.

27th Constitutional Amendment of Pakistan.

Introduction

- **Title:** The Constitution (Twenty-seventh Amendment) Act, 2025.
- **Date Passed:** November 13, 2025 (Assented by President Asif Ali Zardari).
- **Status:** Enacted and part of the Constitution.

Background & Motive

Why was this Amendment needed?

The government presented this amendment as a necessary step to "modernize" the state structure. However, the motives can be understood in two ways:

1. **Government's Stated Motive:**
 - a. **Efficiency:** The Supreme Court was overburdened. Creating a separate **Federal Constitutional Court (FCC)** would let the Supreme Court focus on regular crimes and civil cases, while the FCC handles complex constitutional politics.
 - b. **Military Coordination:** Modern warfare requires the Army, Navy, and Air Force to work as one unit. The amendment aimed to centralize this command under one "Chief of Defence Forces."
 - c. **Stability:** To stop constant political court cases (judicial activism) that destabilize the economy.
2. **Underlying/Political Motive:**
 - a. **Controlling the Judiciary:** The government and establishment felt the Supreme Court was too independent and sometimes favored the opposition (PTI). By creating a new court (FCC) and appointing its judges themselves, they could ensure more favorable rulings.
 - b. **Legalizing Military Power:** It gives the Military Chief a permanent, constitutional role over all armed forces and grants lifetime legal protection to top officials, preventing future trials (like the one faced by Musharraf).

Key Articles Amended

Based on the data you provided, which appears to align with the **draft proposals for the 26th Constitutional Amendment** (specifically the versions proposing a separate Federal Constitutional Court and structural military changes), here is the comparative analysis.

The table below contrasts the **Original/Existing Constitution** (Before) with the **Proposed Amendment** (After) based on your description.

Comparative Analysis: Constitutional Amendments

Article	Subject	Before Amendment (Existing Constitution)	After Amendment (Description of Change)
175	Establishment of Courts	Established the Supreme Court , a High Court for each Province, and such other courts as may be established by law. The Supreme Court was the apex court.	Amended: Formally inserts the "Federal Constitutional Court" (FCC) into the hierarchy, effectively creating a parallel or superior apex court for constitutional matters.
175A	Appointment of Judges	The Judicial Commission of Pakistan (JCP) had a judicial majority (CJP + 4 Senior	Amended: Reconfigures the JCP to include the Chief Justice of the FCC. Reduces judicial members,

		Judges). The role of the Executive/Parliament was limited, ensuring judicial independence in appointments.	giving the Executive and Parliament a decisive majority in appointing judges.
175E	Jurisdiction of FCC	Did not exist. (These powers resided with the Supreme Court under Art. 184(3) and High Courts under Art. 199).	New (Added): Establishes the FCC with exclusive jurisdiction over constitutional interpretation, federal-provincial disputes, and enforcement of fundamental rights.
175I	Retirement Age	Did not exist. (Supreme Court judges retire at 65; High Court judges at 62).	New (Added): Sets retirement age for FCC judges at 68 years , creating a discrepancy with the SC (65 years) and allowing longer tenures for these specific appointees.
191	Rules of Procedure	Subject to the Constitution and law, the Supreme Court may make rules regulating its own practice and procedure.	Substituted: Allows the FCC to regulate its own practice and procedure, creating a distinct procedural framework separate from the Supreme Court.
191A	Supreme Court Rules	<i>Note: Often refers to the 'Practice and Procedure Act' context.</i> Generally, the SC had internal autonomy to set bench formation and case fixation.	Omitted: The provision regarding the Supreme Court's power to self-regulate is omitted or restructured to subordinate it to the new FCC framework.
199	High Court Jurisdiction	High Courts had broad jurisdiction to issue writs for the enforcement of Fundamental Rights and to interpret constitutional questions.	Amended: Limits High Courts. They can no longer hear constitutional questions or fundamental rights cases that now fall under the exclusive domain of the FCC.
200	Transfer of Judges	Transfer of a High Court judge required consultation with the CJP and, crucially, the consent of the judge (except for limited periods/technical instances).	Amended: Grants the JCP power to recommend transfers without consent . Refusal to accept transfer results in disciplinary proceedings (effectively forced transfers).
243	Command of Armed Forces	The President appoints the Chairman Joint Chiefs of Staff Committee (CJCSC) , COAS, CNS, and CAS. The CJCSC is a distinct, coordinating office.	Amended: Abolishes the CJCSC. Creates the Chief of Defence Forces (CDF) . The Army Chief (COAS) acts as the CDF, consolidating command of all three branches under one figure.
243(7)	Military Rank & Status	Did not exist in the Constitution. Ranks and privileges were governed by Army Acts/Statutes.	New (Added): Constitutionally codifies that 5-star officers (Field Marshals) retain rank, uniform, and privileges for life .
248	Immunity	The President and Governors have immunity from criminal proceedings during their term of office. No mention of military ranks.	Amended: Grants lifetime immunity to the President, as well as Field Marshals, Fleet

			Admirals, and Air Force Marshals , from all criminal and civil proceedings.
42	Oaths (Third Schedule)	Oaths of office (e.g., for President, CJP) were sworn to preserve the Constitution and loyalty to Pakistan, usually administered by/in front of the CJP.	Amended: Modifies oaths to substitute references to "Pakistan" or "Supreme Court" with " Federal Constitutional Court " where relevant.
63A	Defection	Disqualification for defection was determined by the Party Head -> Election Commission -> Appeal to the Supreme Court .	Amended: Matters involving the interpretation of defection/floor-crossing are redirected to the FCC (bypassing the Supreme Court).
93	Advisers	The Prime Minister can appoint not more than five advisers.	Amended: Increases the number of advisers the Prime Minister can appoint to seven .
130	Provincial Cabinet	The Cabinet shall not exceed 15 members or 11% of the total membership of the Assembly, whichever is higher.	Amended: Increases the threshold for provincial cabinets in smaller provinces from 11% to 13% .

Critical Analysis

This section analyzes whether the amendment is good (Positive) or bad (Negative) for Pakistan.

5 Positive Arguments (Arguments For)

1. **Specialization:** It separates political cases from regular crime. The Supreme Court can now clear the huge backlog of pending cases for ordinary citizens without being distracted by politics.
2. **Military Jointness:** Modern wars are fought jointly by land, air, and sea. Having a single **Chief of Defence Forces (CDF)** ensures faster decision-making and better coordination during war.
3. **Parliamentary Supremacy:** It gives the elected Parliament more say in appointing judges (for the FCC), theoretically reducing the "dictatorship" of unelected judges.
4. **Stability for Investors:** By stopping the courts from constantly intervening in economic policies and executive decisions, it might create a more stable environment for foreign investment.
5. **Administrative Order:** Restoring Executive Magistrates helps manage small local crimes (like price control or street fights) quickly without clogging up the proper courts.

5 Negative Arguments (Arguments Against)

1. **End of Judicial Independence:** By creating the FCC and hand-picking its judges, the government has effectively "tamed" the judiciary. Judges will be scared to rule against the government for fear of transfer or being sidelined.
2. **Military Hegemony:** It constitutionalizes the dominance of the Army over the Navy and Air Force, and makes the Army Chief arguably the most powerful person in the country, surpassing civilian leaders.
3. **Above the Law:** Granting **lifetime immunity** violates the basic principle of "Equality before Law." It means top officials can commit crimes or violate the constitution while in office and never face justice, even after they retire.
4. **Blow to Provincial Autonomy:** Allowing the center to transfer High Court judges disrupts the independence of provincial courts. It is seen as an attack on the 18th Amendment which gave provinces more freedom.
5. **Human Rights Concerns:** With the Supreme Court losing its power to enforce Fundamental Rights (now with the FCC), citizens may find it harder to get relief against government abuse, as the FCC is more government-aligned.

CONCLUSION

The Way Forward: Constitutionalism in Pakistan (1947–2025)

The constitutional journey of Pakistan, spanning nearly eight decades, offers a panoramic view of a nation in constant negotiation with itself. As we reflect upon the trajectory from the Indian Independence Act of 1947 to the complex legal landscape of 2025, it becomes evident that the Constitution of Pakistan is not a static document but a living organism that has weathered the storms of political instability, martial laws, and institutional clashes. The history of this document is a testament to the resilience of the people of Pakistan and their unwavering desire for a democratic dispensation.

The early years were marked by a painful delay in consensus-building, leading to the administrative centralization that alienated the federating units. The abrogations of 1958 and 1969 taught the state a bitter lesson: that supra-constitutional interventions, no matter how justified by the "Doctrine of Necessity," ultimately erode the moral authority of the state and weaken the federation. The tragedy of 1971 stands as a somber reminder that a constitution must be a bond of trust between the rulers and the ruled, and when that bond is severed, the integrity of the state itself is imperiled.

However, the consensus achieved in the 1973 Constitution remains the greatest political achievement of Pakistan's history. Despite being suspended and mutilated by subsequent dictatorial regimes, it has always bounced back, proving its inherent strength. The 18th Amendment was a watershed moment that corrected the historical imbalances of power, restoring the federal spirit envisaged by the Quaid-e-Azam. In the contemporary era, the focus has shifted towards the interpretation of these laws, with the Judiciary playing a central role in arbitrating political disputes.

As Pakistan moves forward, the lessons from 1947 to 2025 are unequivocal. The stability of the state is intrinsically linked to strict adherence to constitutionalism. The separation of powers must be respected, not just in text but in spirit. The future of Pakistan lies in the realization that the Constitution is the only social contract that binds this diverse nation together. For the aspirants of CSS, PMS, and the Judiciary, the takeaway is clear: the rule of law is not merely a legal concept but the essential prerequisite for national survival and progress.

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